



Patrick Hazelwood <hazelwoodassociatesllc@gmail.com>

NEED QUOTE #34156193 Gap search

3 messages

Unified VM <unifedvm1@gmail.com>

Fri, Mar 27, 2026 at 4:04 PM

To: Patrick Hazelwood <hazelwoodassociatesllc@gmail.com>

Hello,

Please provide FEE and ETA for the following Service(s): GAP SEARCH

Borrower's Name(s): SHARON TAYLOR

Property Address: [34605 FLEET ROAD GLADE SPRING, VA 24340](#)

County: WASHINGTON

Note: We have attached the run sheet. Kindly provide a quote to obtain records recorded beyond 1984 for the current owner

Specific Request :

- 1 Search starts from FVD .If FVD is not available then we can good to complete with the latest deed recorded prior to 24 month chain title.
- 2 If the latest vesting deed is recorded within 24 month, we need 1 prior owner deed to complete the 24 month chain title.
- 3 Plat Map
- 4 Please provide full copies

Requirements:

Please complete a current owner judgment and lien search on the above-referenced real estate, as well as providing current and delinquent tax information. If there is a fee for the tax information, please confirm the fee with our orders department prior to ordering any tax certifications.

Please provide assessment and tax printouts from the proper taxing authorities reflecting the tax status and tax amounts, if available.

Also, provide us with a 24-month chain of title, copy of the current deed, pertinent pages of any open mortgage(s), assignments, mortgage modifications, and any other recorded documents that would affect the existing mortgage(s).

Please note, the copy of the first page of the mortgage(s) provided must include vesting, loan amount and whether the loan is open-ended or closed-ended. If this information is not included on the first page of any mortgage, please provide copies of the additional page(s) containing such information. Please also provide the page of the mortgage indicating any and all riders recorded with the mortgages of record.

Also, please include Full Copies of any Condo, PUD or Mobile Home Riders to the mortgage(s). If the property is a Condo or PUD, please provide full copies of the CC&Rs.
Please provide full Value or out of family deed.

Require 24-month chain of title conveyance and provide plat map for the required orders

--

Best,

Vendor Manager

Unified Research LLC

[539 W Commerce Street](#), 2443, Dallas, TX, USA

Website: www.unifiedresearchllc.com

PROPERTY

Parcel Information

Parcel Record Number (PRN) **28163** Town/District **MONROE**

Account Name **TAYLOR SHARON BROWN**

Account Name2

Care Of

Address1 **34065 FLEET RD**

Address2

City, State Zip **GLADE SPRING, VA 24340**

Business Name

Location Address(es) **34605 FLEET RD**

Map Number

Map Number	Sheet	Insert	DoubleCircle	Block	Lot	SubLot
052-A-5	052		A		5	

Total Acres **0.76**

Deed **NONE**

Additional Deed

Will **AF-2025-0000295**

Plat **NONE**

Additional Plat

Route

Legal Desc 1 PT TR 3 JOSEPH H CLARK 1D

Legal Desc 2 ACR .76

Zoning A1 - AGRICULTURAL, LIMITED

State Class 2 - SINGLE FAMILY SUBURB

Topology ROLLING/SLOPING

Utilities NONE

Assessed Values

Type	2025 Reassessment Value	Previous Value (2024)
Land	\$25,000	\$20,000
Main Structures	\$112,100	\$55,400
Other Structures	\$4,200	\$4,200
TOTALS	\$141,300	\$79,600

NOTE: Previous value shows total improvements as Main Structures value.

Sales History

Grantor	Sale Price	Instrument	Number of Tracts	Sale Date
TAYLOR JOSEPH D ESTATE	\$0	AFFIDAVIT-2025-0000295	1	08/08/2025
BUCHANAN SARAH KATHRYN CLARK ESTATE	\$0	WILLBOOK-85-285	1	02/11/1977

Land Segments

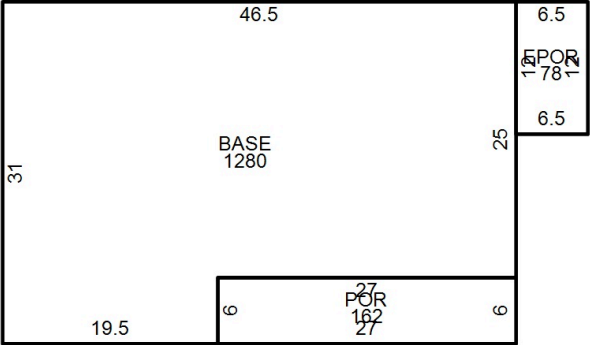
Seg	Description	Size	AdjRate	Value	Water	Sewer
1	HOMESITE	1.00	\$25,000	\$25,000	PUBLIC	SEPTIC

Land Use

SegmentType	LandUseClass	LandUseClassDesc	Acreage	RatePerAcre	ValueCurrentAssessedLandUse
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No data to display

Main Structures

Main Structure 1	Main Structure Value	\$112,100	Rooms	6
	Bedrooms	2	Heated Sq Ft	1,280
			Occupancy	DWELLING
Main Structure Photo			Main Structure Sketch	
				

Main Structure Attributes

Type	Code	# Of
A/C	NO AIR CONDITIONING	1,280
BASEMENTS	CRAWL SPACE	
CARPORTS	NONE	1
ELECTRIC	ELECTRIC	1,280
EXTFIN	ALUMINUM SIDING	1,280
FLOOR	WOOD FLOORING	1,280
FLUES	FLUE	1
FOUNDATION	CINDERBLOCK	1,280
FUEL	GAS	1,280
GARAGES	NONE	1
GAS	NO PUBLIC GAS	1,280
HEAT	HOT WATER	1,280
PLUMBING	FULL BATHS	2
PLUMBING	HALF BATHS	
ROOF MATERIAL	METAL	1,280
ROOF TYPE	GABLE	1,280
WALL	PLASTER	1,280

Main Structure Sections

Sec	% Cmpl	Class	Description	Area	Story Hgt	Yr Built	Eff Yr
1-0	100	BASE	BASE SECTION	1,280	1.00	1949	1949
2-0	100	EPOR	ENCLOSED PORCH	78	1.00	1949	1949
3-0	100	POR	PORCH	162	1.00	1949	1949

Other Structures

Sec	Description	Class	Area	Story Height	YearBlt
1	SHED-FRAME	I705	1	1.00	0
2	CARPORT	I140	1	1.00	0
3	CP-METAL	I146	1	1.00	0

Data last updated: 02/09/2026

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Concise Systems, LLC * www.concisesystems.com * (540)776-1800 * sales@concisesystems.com

WASHINGTON COUNTY
Taxpayer Portal

View Parcel 052-A-5 - TAYLOR BROWN SHARON

Account Number:
10023704
Parcel Number:
052-A-5
GPIN:
28163
Address:
34605 FLEET RD

GLADE SPRING, VA 24340
Current Balance:
\$0.00
Total Balance:
(\$50.00)

2025 Taxes

	Tax	Fees	Penalty	Interest	Total
Bill 2025-1 - Due 5/20/2025					
Real Estate Cycle 1	\$303.80	\$0.00	\$0.00	\$0.00	\$303.80
	\$303.80	\$0.00	\$0.00	\$0.00	\$303.80
Bill 2025-2 - Due 11/20/2025					
Real Estate Cycle 2	\$303.79	\$0.00	\$0.00	\$0.00	\$303.79
	\$303.79	\$0.00	\$0.00	\$0.00	\$303.79
Total 2025 Taxes	\$607.59	\$0.00	\$0.00	\$0.00	\$607.59

WASHINGTON COUNTY
Taxpayer Portal

View Parcel 052-A-5 - TAYLOR BROWN SHARON

Account Number:
10023704
Parcel Number:
052-A-5
GPIN:
28163
Address:
34605 FLEET RD

GLADE SPRING, VA 24340
Current Balance:
\$0.00
Total Balance:
(\$50.00)

Outstanding Bills

	Tax	Fees	Penalty	Interest	Balance
Total Outstanding	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00

REAL ESTATE AFFIDAVIT

COMMONWEALTH OF VIRGINIA VA. CODE § 64.2-510

Court File No. CWF 25-295

Washington County, Virginia

Circuit Court

Joseph Daniel Taylor

03/12/2021

NAME OF DECEDENT

DATE OF DEATH

Sharon Brown Taylor

NAME AND ADDRESS OF SUBSCRIBER

☒ I have an interest as sole heir of Joseph Daniel Taylor in the real property of the decedent; AND/OR☐ I qualified in _____ as
NAME OF COURT

the personal representative of the above-named decedent, who died intestate as to the real estate described herein, and who, at the time of death, was seized of real property in this jurisdiction, briefly described as

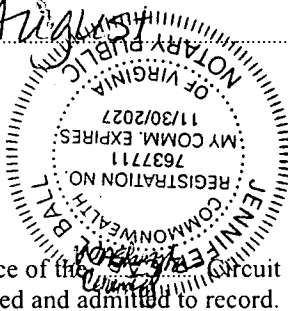
34605 FLEET RD, GLADE SPRING, VA 24340

The name and last known address of decedent's heirs are:

NAMES OF HEIRS	ADDRESSES	RELATIONSHIP	AGE
Sharon B. Taylor	34605 Fleet Rd, Glade Spring Va	Wife	over 18

August 8, 2025
DATESharon Brown Taylor
SIGNATURE OF SUBSCRIBERState/Commonwealth of Virginia [] City #] County of Washington

Subscribed and sworn to before me

by Sharon Brown Taylor
PRINT NAME OF SIGNATORYthis 8th day of August, 2025Jennifer Carl Ball
[] CLERK [] DEPUTY CLERK [x] NOTARY PUBLICMy commission expires 11-30-2027Registration No. 7637711VIRGINIA: In the Clerk's Office of the Washington Circuit Court this 12th day of August, 2025
the foregoing AFFIDAVIT was filed and admitted to record.

Patricia S. Moore, Clerk

Teste:

CLERK

By: Rhonda H. Rogers, Deputy Clerk

I, LEFTWICH C. BUCHANAN, of Washington County, Virginia, being of sound mind and memory, do make this my LAST WILL AND TESTAMENT, hereby revoking all other wills by me at any time heretofore made, with the intention of disposing of my entire estate.

FIRST: I direct that all my just debts be paid and that my funeral expenses shall not exceed the sum of \$1,500.00.

SECOND: Subject to the hereinafter stated provision, I give and bequeath to the following named persons the cash sums set forth following their names:

(A) SAMUEL DIXON CLARK, my brother-in-law, FIVE THOUSAND (\$5,000.00) DOLLARS.

(B) MARGARET CLARK TAYLOR, my sister-in-law, ONE THOUSAND (\$1,000.00) DOLLARS.

(C) JOHN R. FORE, my neighbor, ~~ONE THOUSAND~~ ^{Five Hundred} ~~(1,000.00)~~ ^(500.00) DOLLARS.

(D) FRANK FORE, my neighbor, ~~ONE THOUSAND~~ ^{Five Hundred} ~~(1,000.00)~~ ^(500.00) DOLLARS.

In the event that, after payment of my just debts, funeral expenses and the costs of administration of my estate, there are not sufficient assets in my estate which can be converted into cash by my executor with which to pay in full all of the four foregoing cash bequests, then each bequest shall be paid in the proportion that the value of such stated bequest bears to the total sum of money available for payment of all of same.

THIRD: In event there is any property left in my estate after payment of the foregoing items, I authorize and direct my executor, hereinafter named, to convert same into cash, in such manner as he deems best, and I give and bequeath all the balance remaining in his hands to the SALVATION ARMY, Bristol, Virginia.

FOURTH: I hereby nominate and appoint J. S. CLENDENEN as Executor of this my last will and testament and request that no security be required upon his bond, upon his qualification as such. My said Executor is hereby authorized and directed to make sale of any tangible personal property which I may own at the time of my death, and also make sale of any real estate which I may own or in which I may own an undivided interest at the time of my death and execute proper deed or deeds therefor, with the proceeds thereof to be paid over as directed in this my said will.

Given under my hand and seal, this the 3rd day of May, 1977.

Leftwich C. Buchanan (SEAL)
Leftwich C. Buchanan

The above signature of the testator was made and the foregoing will was acknowledged to be his LAST WILL AND TESTAMENT by the said testator, in the presence of us, two competent witnesses, present at the same time; and we, the said witnesses, do hereunto subscribe the said will on the date last above written, in the presence of the said testator and of each other, at the request of the said testator, who was then of sound mind and over the age of twenty-one years.

Patricia M. Ellison

George B. Krieger

VIRGINIA:

In the Clerk's Office of the Circuit Court of Washington County, the 8th day of March, 1978.

RE: WILL OF LEFTWICH C. BUCHANAN, DECEASED.

A writing dated May 3, 1977, purporting to be the last will and testament of Leftwich C. Buchanan, deceased, was this day presented in the Clerk's Office aforesaid by J. S. Clendenen, the executrix named therein, and offered for probate.

It appearing that Leftwich C. Buchanan was a resident of Washington County, Virginia, and that he died on January 5, 1978. Thereupon, came Goerge B. Kreger, one of the subscribing witnesses to said writing, who after being duly sworn, testified that the said writing was signed by the testator as and for his last will and testament in his presence, and in the presence of Patricia M. Ellison, the other subscribing witness thereto, and stated that they signed their names thereto as attesting witnesses at the request of the testator, in his presence, and in the presence of each other, and that he was of sound mind and capable of making a will. Thereupon, said writing is established and adjudged to be the true last will and testament of Leftwich C. Buchanan, and is ordered to be recorded as such.

It appearing that J. S. Clendenen is named as executor in said will, and upon his motion he is appointed executor of the estate of Leftwich C. Buchanan, and is permitted to qualify as such. Whereupon, he took the oath prescribed by law, and entered into and acknowledged a bond in the penalty of \$11,000.00, conditioned according to law, surety thereon having been waived in said will.

Upon the motion of the executor, he is allowed to file an inventory in lieu of appraisal on this estate.

Teste:

E. T. Smith Clerk

deceased.

[illegible]

I do solemnly swear that I have made diligent inquiry as to the names, ages, and addresses of the heirs of the above-named decedent, and that I believe the above list of same to be true and correct, so help me God.

✓

Attorney

Executor _____ of Said Decedent.

VIRGINIA — County of Washington, to-wit:

Subscribed and sworn to before me in my County aforesaid this the...8th...day of March.....1978.

Bobbie M. Keen
Deputy Clerk Circuit Court of Washington County.

Filed in Clerk's Office, Circuit Court of Washington County, March 8, 1978.

Robert M. Keen Deputy Clerk.

I, SARAH KATHRYN CLARK BUCHANAN, of Washington County, Virginia, being of sound mind and memory, do make this my LAST WILL AND TESTAMENT, hereby revoking all other wills by me at any time heretofore made, with the intention of disposing of my entire estate.

FIRST: I direct that all my just debts, including funeral expenses, be paid.

SECOND: I give and bequeath my tangible personal property as follows:

(1) To my nephew, RICHARD CLARK HYATT, I give and bequeath my cherry wash-stand with the marble top, together with the dishes in said wash-stand and the picture of a Mexican water girl and donkey which hangs on the wall above said wash-stand, absolutely.

(2) To my sister, MARGARET CLARK TAYLOR, I give and bequeath my piano and the dishes on its top, absolutely.

(3) I give and bequeath the automobile owned by me at the time of my death to D. A. TAYLOR and MARGARET CLARK TAYLOR, with the express proviso that they shall use said automobile, or its replacement, to take my husband, LEFTWICH C. BUCHANAN, anywhere he needs to go during his lifetime.

(4) I give and bequeath the old Ryburn walnut chest of drawers to my sister, JOSEPHINE CLARK HYATT, for the duration of her natural life, and at her death, to my nephew, RICHARD CLARK HYATT, absolutely. (In view of the fact that my sister has considerable property in her own name, I am not providing further for her in this my will.)

(5) I give and bequeath the residue of my household furnishings and tangible personal property to my husband, LEFTWICH C. BUCHANAN, for the duration of his natural life, and upon his death, same shall become the absolute property of my

nephew, JOSEPH DANIEL TAYLOR. I expressly direct that none of my said items of household furnishings or tangible personal property, herein bequeathed, shall be sold or disposed of during the lifetime of my husband, LEFTWICH C. BUCHANAN, except for such electrical appliances as may need replacement.

THIRD: Subject to the hereinafter stated proviso, I give and bequeath to the following named persons and chapel, in cash, the sums of money set forth following their names:

- (1) To my brother, JAMES B. CLARK - - - - \$5,000.00
- (2) To my sister, MARGARET CLARK TAYLOR - - 5,000.00
- (3) To my brother, SAMUEL DIXON CLARK - - - 10,000.00
- (4) To my husband, LEFTWICH C. BUCHANAN - - 2,000.00
- (5) To my nephew, JOSEPH DANIEL TAYLOR - - 5,000.00
- (6) To RACHEL BLEVINS SUTHERLAND, in appreciation of her help to me, - - - 500.00
which bequest shall be free from death taxes, and in event any U. S. Estate Tax is assessable against her share, said tax shall be paid as a part of the costs of administration of my estate.
- (7) To McCALL'S GAP PRESBYTERIAN CHAPEL, - - 5,000.00
subject to the provisions hereinafter stated.

In event of the death of any of the foregoing named persons, prior to my death, then I give and bequeath to McCALL'S GAP PRESBYTERIAN CHAPEL, the sum of money which would have gone to that person, had he or she survived me.

A receipt for payment of any sums herein bequeathed to McCALL'S GAP PRESBYTERIAN CHAPEL executed by JEFF HENDERSON, who is presently treasurer, elder and one of the trustees of said congregation, shall be a sufficient acquittance to my executor, hereinafter named, for payment of same, and I direct that same shall be used or allocated by or for the purpose of said congregation under the direction of JEFF HENDERSON.

FOURTH: I give and bequeath any balance of my intangible personal property, which shall remain after the payment of my just debts, funeral expenses, the costs of administration of my estate, and payment of the specific bequests contained in clause THIRD of this my will, to McCALL'S GAP PRESBYTERIAN CHAPEL, with the same proviso in regard to receipt and use and allocation thereof as contained in said clause THIRD of this my will.

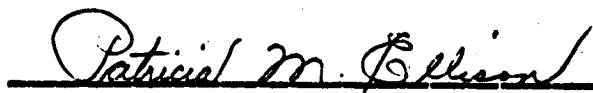
FIFTH: I give and devise all of my real estate, whether now owned or hereafter acquired and wheresoever situate, to my husband, LEFTWICH C. BUCHANAN, for the duration of his natural life, with remainder in fee simple estate to my nephew, JOSEPH DANIEL TAYLOR, absolutely.

SIXTH: I hereby nominate and appoint J. S. CLENDENEN, of Glade Spring, Virginia, as Executor of this my said will, and do hereby request the court to not require any security upon his bond, upon his qualification as such.

Given under my hand and seal, this the 16th day of April, 1975.

 (SEAL)
Sarah Kathryn Clark Buchanan

The above signature of the testatrix was made and the foregoing will was acknowledged to be her LAST WILL AND TESTAMENT by the said testatrix, in the presence of us, two competent witnesses, present at the same time; and we, the said witnesses, do hereunto subscribe the said will on the date last above written, in the presence of the said testatrix and of each other, at the request of the said testatrix, who was then of sound mind and over the age of twenty-one years.





VIRGINIA:

In the Clerk's Office of the Circuit Court of Washington County, the 11th day of February, 1977.

RE: WILL OF SARAH KATHRYN CLARK BUCHANAN, DECEASED.

A writing dated April 16, 1975, purporting to be the last will and testament of Sarah Kathryn Clark Buchanan, deceased, was this day presented in the Clerk's Office aforesaid by J. S. Clendenen the executor named therein, and offered for probate.

It appearing that Sarah Kathryn Clark Buchanan was a resident of Washington County, Virginia, and that she died on January 14, 1977. Thereupon, came George B. Kreger, one of the subscribing witnesses to said writing, who, after being duly sworn, testified that the said writing was signed by the testatrix as and for her last will and testament in his presence, and in the presence of Patricia M. Ellison, the other subscribing witness thereto, and stated that they signed their names thereto as attesting witnesses at the request of the testatrix, in her presence, and in the presence of each other, and that she was of sound mind and capable of making a will. Thereupon, said writing is established and adjudged to be the true last will and testament of Sarah Kathryn Clark Buchanan, and is ordered to be recorded as such.

It appearing that J. S. Clendenen is named as executor in said will, and upon his motion he is appointed executor of the estate of Sarah Kathryn Clark Buchanan, and is permitted to qualify as such. Whereupon, he took the oath prescribed by law and entered into and acknowledged a bond in the penalty of \$46,000.00, conditioned according to law, surety thereon having been waived in said will.

Upon the motion of the executor, he is allowed to file an inventory in lieu of appraisal on this estate.

Teste: Kathryn B. Mock Clerk

LIST OF HEIRS

List of Heirs of Sarah Kathryn Clark Buchanan deceased.

NAMES OF HEIRS	AGES YEARS	RELATIONSHIP TO DECEDENT	ADDRESSES
Leftwich C. Buchanan	77	Husband	Route 2, Glade Spring, Va.

I do solemnly swear that I have made diligent inquiry as to the names, ages, and addresses of the heirs of the above-named decedent, and that I believe the above list of same to be true and correct, so help me God.

[Signature]
..... of Said Decedent.

VIRGINIA — County of Washington, to-wit:

Subscribed and sworn to before me in my County aforesaid this the 11th day of February, 1977

[Signature]
Deputy Clerk Circuit Court of Washington County.

Filed in Clerk's Office, Circuit Court of Washington County, February 11, 1977.

[Signature] Dep. Clerk.

(Sec. 64-127, Code of Va., 1960.)

Form 48
Department of Taxation

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TAXATION
Richmond 23215

8 February 1977

CERTIFICATE SHOWING NO INHERITANCE TAX ASSESSABLE

This is to certify it has been determined by the Department of Taxation that no Inheritance Tax is assessable on the estate of Mary Booher of Washington County

Virginia, who died March 8, 1973 (no qualification)

Lucille Rutherford
c/o James E. Nunley, Esq.
Attorney At Law
P. O. Box 117
Bristol, Virginia 2421

DEPARTMENT OF TAXATION

[Signature]
Director, Division of Inheritance and Gift Taxes

(See Law On Reverse Side)

Form 48
Department of Taxation

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF TAXATION
Richmond 23215

11 February 1977

CERTIFICATE SHOWING NO INHERITANCE TAX ASSESSABLE

This is to certify it has been determined by the Department of Taxation that no Inheritance Tax is assessable on the estate of Reba Gay Severt Sturgill of Washington

Virginia, who died May 7, 1976

Fred A. Severt
c/o Dorothy B. Boucher, Esq.
Attorney At Law
188 E. Main Street
Arlington, VA 24210

DEPARTMENT OF TAXATION

[Signature]
Director, Division of Inheritance and Gift Taxes

(See Law On Reverse Side)

a part of the land conveyed to R. L. Miller by C. T. Snyder by deed dated February 6th, 1911, recorded in Deed Book 75 at page 679, and being the same land conveyed to J. J. Miller by R. L. Miller and wife, by deed dated July 28th, 1941, and recorded in Deed Book 188 at page 296.

TO HAVE AND TO HOLD said tract of land, together with all appurtenances thereunto in any wise belonging, unto the said second parties, their lawful heirs and assigns, in fee simple forever.

IN WITNESS WHEREOF the said parties of the first part have placed hereunto their hands and seals this the day and year first above written.

Leonard A. Miller (Seal)

Lenore E. Miller (Seal)

State of Ohio

County of Cleveland, to-wit:

I, Helen Roberts, a Notary Public in and for the County (or City) aforesaid, in the State of Ohio, do hereby certify that Leonard A. Miller and Lenore Miller, his wife, whose names are signed to the writing above bearing date on the 3rd day of December, 1945, have this day acknowledged the same before me in my County (or City) aforesaid.

Given under my hand this 6th day of December, 1945.

My commission expires Sept. 23, 1948.

Helen Roberts, Notary Public.

HELEN ROBERTS, NOTARY PUBLIC

My Commission Expires 9-23-48.

(Notarial Seal, Cuyahoga County, Ohio)

(55¢ U. S. Documentary Stamps)

VIRGINIA: In the Clerk's Office of the Circuit Court of Washington County, the 22nd day of December, 1945.

The foregoing writing was delivered to the Clerk of the Circuit Court aforesaid, on the day above mentioned, and admitted to record at 11:40 o'clock A. M., in Deed Book No. 209, Page 400.

Teste:

Sarah Kathryn Clark
Deputy Clerk.

- - - - 0 0 0 0 - - - -

VIRGINIA: Circuit court of the county of Washington, on Friday, the sixteenth day of February, in the year of our Lord, nineteen hundred and forty-five.

PRESENT: The Honorable Walter H. Robertson, Judge.

Sarah Kathryn Clark and Margaret Virginia Clark,

vs.

DECREE.

Josephine Clary Hyatt, James B. Clark, Samuel D. Clark, Rachel Faris Clark, William Rogers Clark, Jr., an infant, and all persons to the complainants unknown who may be the heirs at law of Samuel D. Clark and William Rogers Clark, deceased, and all persons unknown or yet to be born or created who may have any interest in the estate of Estella R. Clark, now deceased, and Mildred Clark

This cause came on this day to be heard upon the bill of complaint of

Sarah Kathryn Clark and Margaret Virginia Clark; upon process duly executed upon Rachel Faris Clark, surviving consort of William Rogers Clark, William Rogers Clark, Jr., an infant, and E. H. Moore, Guardian ad Litem for the infant defendant, and all persons to the complainants unknown who may be the heirs at law of Samuel D. Clark and William Rogers Clark, deceased, and all persons unknown or yet to be born or created who may have any interest in the estate of Estella R. Clark, deceased; upon process executed upon Samuel D. Clark, by delivering a copy to his wife, Mildred Clark, a member of his family and over the age of fourteen years; upon order of publication, duly matured, as to Josephine Clark Hyatt and James B. Clark and Samuel D. Clark; upon the answer of E. H. Moore, Guardian ad Litem of the infant defendant, under oath; upon the answer of E. H. Moore, Guardian ad Litem for the unknown parties, under oath; upon the answer of Rachel Faris Clark; upon the answer of Samuel D. Clark and Mildred D. Clark. upon the petition of Richard Clark Hyatt, an infant, who sues by his mother and next friend, Josephine Clark Hyatt, the said Richard Clark Hyatt being the only child of Josephine Clark Hyatt, one of defendants; upon the petition of Virginia Anne Clark and James J. Clark, who sue by their father and next friend, James B. Clark, they being the only children of James B. Clark, one of defendants; and was argued by counsel.

Upon consideration of all of which it appearing that J. H. Clark departed this life intestate, in Washington County, Virginia, on July 1, 1940; that the said J. H. Clark left surviving him his widow, Sarah Estella Rogers Clark (Estella R. Clark), now deceased, she having departed this life testate on February 10, 1942, and the said J. H. Clark left surviving him as his heirs at law the following parties, namely:

- Josephine Clark Hyatt, a daughter
- James B. Clark, a son
- Sarah Kathryn Clark, a daughter
- Margaret Virginia Clark, a daughter
- William Rogers Clark, a son
- Samuel D. Clark, a son

that the said William Rogers Clark is now deceased, he having left surviving him his widow, Rachel Faris Clark, and one son, William Rogers Clark, Jr., an infant about 14 months of age; that William Rogers Clark, Sr. was a member of the armed forces of the United States, and was killed in action in Italy on February 29, 1944, according to the allegations in the bill, and William Rogers Clark died intestate and left his widow, Rachel Faris Clark, and said son, William Rogers Clark, Jr., as his sole heir at law.

It further appearing that Samuel D. Clark is now a member of the armed forces of the United States of America; that he has filed an answer herein, and has consented that this suit may be heard at this time.

It further appearing to the Court that J. H. Clark died seized and possessed of a large body of land, aggregating between eight and nine hundred acres, located in and near Glade Spring, Washington County, Virginia; that said lands have never been partitioned and divided among the heirs at law.

It appears that Estella R. Clark, widow of J. H. Clark, also died seized and possessed of certain real estate, which she disposed of by her will, which is of record in the Clerk's Office of this Court in Will Book 40, page 380, same

having been admitted to probate April 9, 1942, and an attested copy of the will is attached to the bill in this cause.

It further appears that J. H. Clark and Estella R. Clark owned some lands in common, and that other tracts are adjacent, each to the other; that the lands of which J. H. Clark died seized and possessed are owned by the following parties in the following proportions:

Josephine Clark Hyatt	one-sixth
James B. Clark	one-sixth
Sarah Kathryn Clark	one-sixth
Samuel D. Clark	one-sixth
Margaret Virginia Clark	one-sixth
Rachel Faris Clark, as widow of William Rogers Clark, a deceased son of J. H. Clark, and William Rogers Clark, Jr., the only child of William Rogers Clark, Sr., are entitled to the share of William Rogers Clark, Sr. in the lands of J. H. Clark, namely	one-sixth

the said William Rogers Clark, Jr., being entitled to said one-sixth, subject to the dower rights of his mother therein; that the lands of which Estella R. Clark died seized and possessed are disposed of by her will.

It appearing that the parties have asked for a construction of said will, the Court is of opinion that the real and personal property of which Estella R. Clark died seized and possessed goes to her six children in equal portions, in fee, except the share of William Rogers Clark (Rogers Clark) and Samuel D. Clark (Dixon Clark).

It appears that William Rogers Clark, Sr. (Rogers Clark) is now deceased, and left his widow, Rachel Faris Clark and one child, namely: William Rogers Clark, Jr., it is adjudged, ordered and decreed that the share of William Rogers Clark, Sr., out of his mother's estate, Estella R. Clark, shall go in fee simple to William Rogers Clark, Jr., and the widow, Rachel Faris Clark, shall take nothing by way of dower or distributive share, either out of the real or personal estate which William Rogers Clark, Sr. obtained by virtue of his mother's will; that the one-sixth of the real and personal estate devised by Estella R. Clark to Samuel D. Clark (Dixon Clark) is to be held by him, subject to the terms of said will, to which reference is here made, and it is adjudged, ordered and decreed that Samuel D. Clark is entitled to take under the will of his mother, Estella R. Clark, a life estate in the one-sixth interest of his mother's real estate, and the income from the personal estate for life, and the remainder of the real estate and personal estate shall go to his children, if any, and their descendents ; if none, to his brothers and sisters and their descendents, and Mildred Clark, wife of Samuel D. Clark, has no contingent right of dower in said one-sixth share of the real estate so devised by Estella R. Clark to Samuel D. Clark; neither is the wife of Samuel D. Clark entitled to any income in the proportion of the personal estate bequeathed by the said Estella R. Clark to Samuel D. Clark; that the real and personal estate of which Estella R. Clark died seized and possessed is owned by the following parties in the following proportions:

Josephine Clark Hyatt	one-sixth, in fee
James B. Clark	one-sixth, in fee
Sarah Kathryn Clark	one-sixth, in fee
Margaret Virginia Clark	one-sixth, in fee

William Rogers Clark, Jr., only son and heir
at law of William Rogers Clark, Sr. one-sixth, in fee

The share of Samuel D. Clark in the real estate of Estella R. Clark shall be one-sixth ^{for} life, and the remainder to any child or child born to Samuel D. Clark, and if none, then to his brothers and sisters, and their descendents, in equal portions; the interest of Samuel D. Clark in the personal estate devised to him under his mother's will shall be the income therefrom for and during the natural life of Samuel D. Clark, and the remainder in fee simple to his child or children, if any; if none, then to his brothers and sisters and their descendents, in equal portions

It further appears that the complainants, as heirs at law of J. H. Clark, and devisees and legatees under the will of Estella R. Clark, have asked for partition of the real and personal estate of which J. H. Clark died seized and possessed, and of the real estate of which Estella R. Clark died seized and possessed, and also asked for partition and division of any undivided personal estate of Estella R. Clark, and ask that the real and personal estate of the said J. H. Clark and Estella R. Clark be apportioned among the parties, in accordance with their respective interest therein; that the share of William Rogers Clark, Sr., out of the real estate of Estella R. Clark be assigned to William Rogers Clark, Jr., in fee, and that Rachel Faris Clark, widow of William Rogers Clark, Sr., shall have no dower interest in the estate of her late husband, which he received under the will of his mother; neither shall the said widow take any share in the personal estate under the will of Estella R. Clark in any amount which was bequeathed to William Rogers Clark, Sr.

The Court is of opinion that complainants are entitled to have partition of the lands and personal property mentioned and described in the bill and proceedings in this cause, it is accordingly adjudged, ordered and decreed that B. B. Huff, W. J. Johnson, M. L. Robinson, Noel Craig and S. C. Copenhaver, who are hereby appointed Special Commissioners for the purpose, shall go upon the lands of which J. H. Clark and Estella R. Clark died seized and possessed, and they shall partition said lands in kind among the parties entitled thereto, in accordance with their respective interest therein, having due regard to water, ways, wood and improvements, so that each party shall have his or her proportionate share in value of the real estate.

It is further adjudged, ordered and decreed that, whereas, Samuel D. Clark (Dixon Clark) was devised by his mother one-sixth of her real estate, subject to certain terms and conditions set forth in said will, and hereinbefore referred to and construed, it is ordered that the Commissioners shall assign to Samuel D. Clark, and include in his share at least one-sixth in value of the real estate of which his mother, Estella R. Clark died seized and possessed, and this one-sixth shall be subject to the conditions set forth in the will of Estella R. Clark, in accordance with the Court's construction placed on the provisions of said will in this decree.

It is ordered that said Commissioners, in making partition of said real estate, do lay off and assign, by proper metes and bounds, the share of the parties entitled to share therein, if partition of said real estate can be properly made in that way, the real estate to be divided in six equal parts, but if said Commissioners shall find that partition cannot be conveniently made of said real

estate among the aforesaid parties, in accordance with their respective interest therein, then they are required to report the facts upon which their opinion is based to this Court, and also whether the interest of those who are entitled to said real estate, or to its proceeds, will be promoted by sale of the real estate, or allotment of part and sale of the residue, and what, in their opinion, is the fee simple value of the whole of the real estate of which J. H. Clark and Estella R. Clark died seized and possessed, and whether the entire tract of land of which J. H. Clark and Estella R. Clark died seized and possessed can be divided, and whether the tract of land of which J. H. Clark died seized and possessed can be apportioned in kind, and whether the lands of which Estella R. Clark died seized and possessed can be apportioned in kind, and in either case, they are required to report their proceedings under this decree to this Court.

It is further adjudged, ordered and decreed that the personal estate of which J. H. Clark died seized and possessed shall be apportioned among the parties entitled thereto, if divisible in kind; if not divisible in kind, in the opinion of the Commissioners, they shall report that fact to the Court, and whether the interest of the parties would be promoted by a sale of the personal property, and they shall report the facts upon which their opinion is based to this Court; that the parties entitled to share in the personal estate of J. H. Clark, and their respective interest, are as follows:

Josephine Clark Hyatt	one-sixth
James B. Clark	one-sixth
Sarah Kathryn Clark	one-sixth
Samuel D. Clark	one-sixth
Margaret Virginia Clark	one-sixth
William Rogers Clark, Jr., /subject to his mother's distributive share therein, the said Rachel Faris Clark, widow of William Rogers Clark, Sr., deceased, being entitled to one-third of one-sixth, and William Rogers Clark, Jr. being entitled to two-thirds of one-sixth	one-sixth

likewise the Commissioners shall partition and divide in kind, if divisible in kind, the personal estate, if any, of which Estella R. Clark died seized and possessed, and which has not heretofore been divided, same to be divided in kind, if, in the opinion of the Commissioners, same is divisible in kind; if not, said Commissioners shall report to the Court whether the interest of the parties will be promoted by sale of the entire estate and division of the proceeds.

The interest of the respective parties in the personal estate of Estella R. Clark is as follows:

Josephine Clark Hyatt	one-sixth
James B. Clark	one-sixth
Sarah Kathryn Clark	one-sixth
Margaret Virginia Clark	one-sixth
William Rogers Clark, Jr.	one-sixth
Samuel D. Clark /in trust for the use and benefit of Samuel D. Clark for and during his natural life, and the remainder in fee to any child or children of Samuel D. Clark; if none, then to the brothers and sisters of Samuel D. Clark and their descendents in equal portions	one-sixth

It is further adjudged, ordered and decreed that before said Commissioners, or any of them, shall proceed to discharge their duties as Commissioners, they, and each of them, shall take oath to faithfully and impartially make partition of the real and personal property in this cause, in accordance with the requirements of this decree, and they shall return their report as to what they shall do hereunder as Commissioner to this Court, accompanying same with a description, by proper metes and bounds, of the respective parcels allotted to the various co-parceners entitled to share in the real estate, together with all evidence which may be taken before them pertaining to said partition, and all maps, plats and deeds made and used in connection therewith.

The said Commissioners are authorized and empowered to employ a competent surveyor to assist them in their duties hereunder.

It is further adjudged, ordered and decreed that if said Commissioners shall determine said property is not susceptible of partition in kind, they shall so report to this Court, setting forth in such report the facts upon which they base their conclusion with reference thereto.

The Court's opinion, by agreement, is made a part of the record in this cause.

"I have seen this decree,

E. H. Moore, G. A. L.

A Copy - Teste: Bertha Hardin, D.
Clerk.

IN THE CIRCUIT COURT OF WASHINGTON COUNTY, VIRGINIA.

SARAH KATHRYN CLARK AND
MARGARET VIRGINIA CLARK

vs.

Report of Commissioners

JOSEPHINE CLARK HYATT, et als

The undersigned, B. B. Huff, M. L. Robinson, W. J. Johnson, Noel Craig and S. C. Copenhaver, respectfully report to the Court as follows:

That the undersigned were appointed Commissioners to partition and divide the real estate of which J. H. Clark and Estella R. Clark, husband and wife, died seized, by decree entered in the above styled cause on the 16th day of February, 1945, and also to partition certain personal property mentioned and described in said decree; that the undersigned, pursuant to the terms of said decree, after being duly sworn, went upon the lands, viewed same, and had maps made by P. L. Cole, C. E., and endeavored to follow the instructions of the decree appointing them commissioners, and undertook to apportion the land among the parties entitled thereto in accordance with the Court's orders.

That the undersigned assigned to the following named persons the following tracts of land:

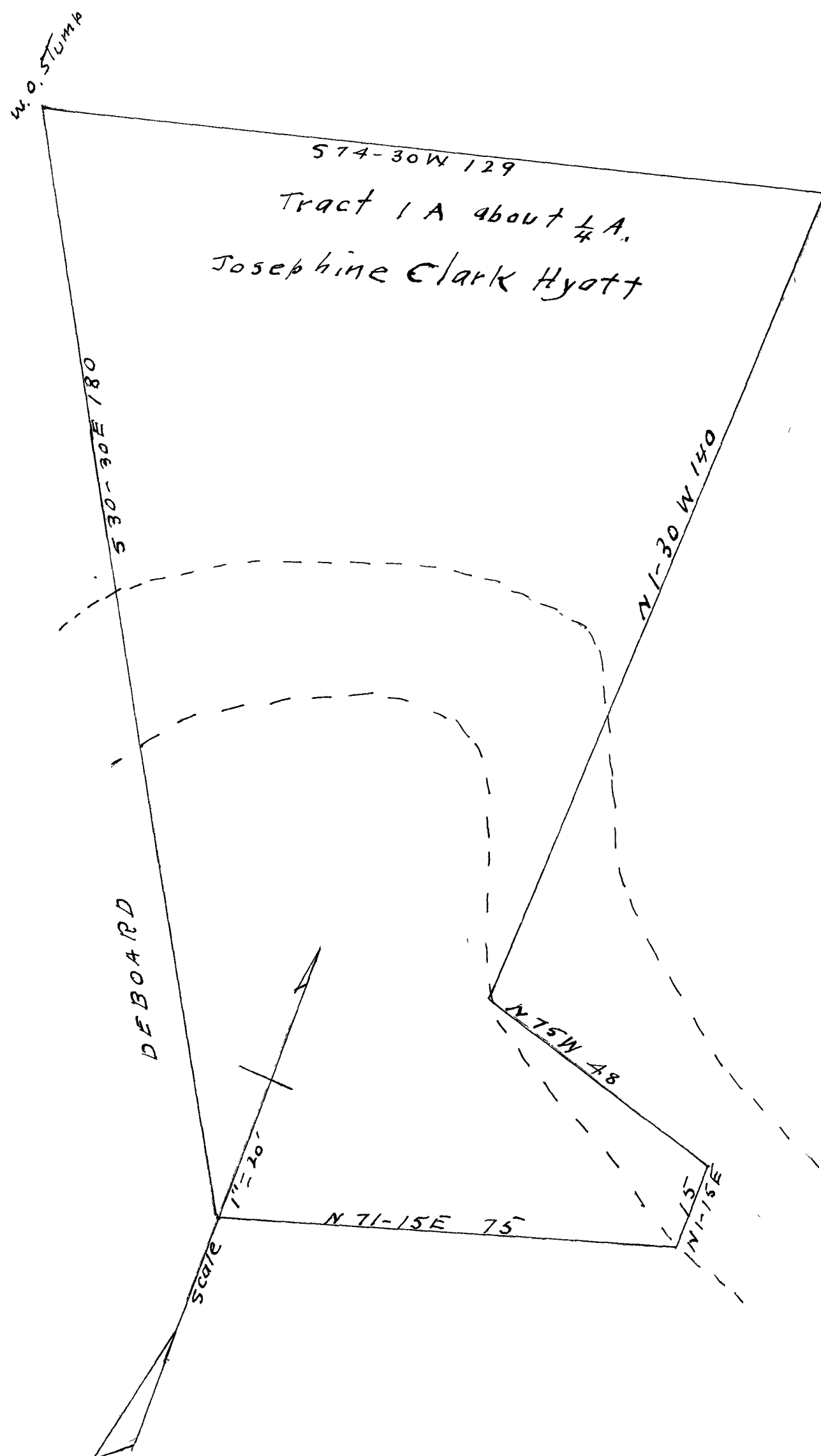
To Josephine Clark Hyatt, Tract No. 1, containing 39 acres, located on Highway No. 91, leading from Glade Spring to Saltville, and described by metes and bounds as follows permap attached:

BEGINNING at a point on the eastern edge of Highway No. 91; thence with same, N 12 W 153 feet to a point; thence S 83 15 E 45 feet; thence N 10 45 E 174 feet; thence N 14 45 E 1293 feet; thence S 65 45 E 678 feet; thence N 32 E 260 feet; thence S 86 E 585 feet; thence S 19 W 1482 feet; thence N 83 15 W 1180 feet;

thence S 8 15 W 40 feet; thence S 17 15 W 100 feet to the BEGINNING, containing 39 acres, as per map attached hereto and made a part hereof.

We assign to Josephine Clark Hyatt what is designated as Tract 1-A, which is on the northern end of Tract No. 2, consisting of approximately one-fourth of an acre, be the same more or less, and described as follows according to map hereto attached;

BEGINNING at a point on said map, in the DeBord line; thence N 71 15 E 75 feet; thence N 1 15 E 15 feet to a point near the center of the highway shown on said map; thence N 75 W 48 feet; thence N 1 30 W 140 feet; thence S 74 30 W 129 feet to a white oak stump; thence S 30 30 E 180 feet to the point of Beginning.



To Josephine Clark Hyatt, Tract No. 2, containing 126 acres, and described by metes and bounds as follows per map attached:

BEGINNING at a point in Highway No. 91 shown on said map; thence leaving the highway, N 79 W 1018 feet; thence S 25 W 395 feet; thence N 50 15 W 570 feet; thence N 69 45 W 800 feet; thence N 76 45 W 1196 feet; thence S 12 W 200 feet; thence N 76 45 W 300 feet; thence N 12 E 700 feet; thence N 12 30 W 490 feet; thence N 66 15 E 195 feet; thence N 89 E 295 feet; thence S 61 30 E 242 feet; thence S 75 30 E 95 feet; thence S 80 30 E 123 feet; thence S 89 E 161 feet; thence N 75 E 100 feet; thence N 71 15 E 323 feet; thence N 1 15 E 15 feet; thence N 83 15 E 111 feet; thence S 88 30 E 106 feet; thence N 83 15 E 230 feet; thence N 52 30 E 184 feet; thence S 69 15 E 243; thence N 76 E 200 feet; thence East 150 feet; thence S 80 E 180 feet; thence N 86 30 E 171 feet; thence N 75 E 207 feet; thence S 21 E 112 feet; thence S 17 30 E 100 feet; thence S 12 E 1818 feet to the point of BEGINNING, containing 126 acres, as per map hereto attached.

THERE IS RESERVED AND EXCEPTED from the foregoing description a small plot of land shown on said map, marked "C", for Church, which church lot shown on the map is excepted, and the same is described as follows:

BEGINNING at a point on said map in the edge of the highway; thence S 21 E 112 feet; thence leaving the highway 86 feet; thence in a northerly direction 112 feet; thence back to the highway, the point of BEGINNING, and being the lot shown on the map, on which a church is located.

To J. B. Clark we assign a tract of land containing 200 acres, located on Highway No. 91, near McCall's Gap, and described by metes and bounds as follows:

BEGINNING at a point in the highway shown on said map; thence N 42 W 237 feet; thence N 75 30 W 608 feet; thence N 78 30 W 530 feet; N 23 15 W 157 feet; thence S 63 W 222 feet; thence N 28 W 162 feet; thence S 62 30 W 166 feet; thence N 29 45 W 460 feet; thence S 43 30 W 983 feet; thence N 51 30 W 478 feet; thence N 88 30 W 580 feet; thence N 4 30 E 344 feet; thence N 51 45 W 300 feet; thence N 24 15 W 522 feet; thence N 10 45 W 510 feet; thence N 40 E 190 feet; thence N 12 E 708 feet; thence S 76 45 E 300 feet; thence N 12 E 200 feet; thence S 76 45 E 1196 feet; thence S 69 45 E 800 feet; thence S 50 15 E 570 feet; thence N 25 E 395 feet; thence S 79 E 1018 feet to the highway; thence with the highway as shown on said map, S 12 E 800 feet; thence S 6 15 E 100 feet; thence S 6 15 W 100 feet; thence S 14 15 W 100 feet; thence S 17 45 W 300 feet; thence S 6 15 W 100 feet; thence S 11 E 100 feet; thence S 16 E 200 feet; thence S 4 E 100 feet; thence S 2 30 W 100 feet; thence S 19 45 W 100 feet; thence S 22 30 W 281 feet to the point of BEGINNING, containing 200 acres, as per map hereto attached.

To Margaret Virginia Clark we assign a tract of 102.5 acres, on which the mansion house of J. H. Clark is located, together with other buildings and improvements, and described by metes and bounds as follows per map attached:

BEGINNING at a point in the center of the highway, east of the mansion house shown on said map; thence S 8 30 W 828 feet; thence S 58 30 E 1122 feet; thence S 57 45 E 312 feet; thence S 28 30 W 536 feet; thence S 74 45 W 115 feet; thence S 75 W 831 feet; thence S 72 45 W 410 feet; thence N 44 30 W 1634 feet to Highway No. 91; thence with the right-of-way of same as shown on said map, N 22 30 E 281 feet; thence N 19 45 E 100 feet; thence N 2 30 E 100 feet; thence N 4 W 100 feet; thence N 16 W 200 feet; thence N 11 W 100 feet; thence N 6 15 E 100

feet; thence N 17 45 E 300 feet; thence N 14 30 E 100 feet; thence N 6 15 E 100 feet; thence N 6 15 W 100 feet; thence N 12 W 261 feet to the center of the highway, which highway intersects with Highway No. 91 shown on said map; thence S 78 E 300 feet; thence S 75 15 E 400 feet; thence S 69 30 E 300 feet; thence S 64 E 665 feet to the point of BEGINNING, containing 102.5 acres, as per map attached.

We assign to Sarah Kathryn Clark the following described tracts of land:

Tract No. 1, containing 44.5[✓] acres, known locally as the Dr. Minter Dunn Place, located on the old Saltville Road, northwest of Glade Spring, and described by metes and bounds as follows per map attached, showing the 44.5 acre tract:

BEGINNING at a point in the center of the highway shown on said map; thence leaving the highway, N 83 30 W 54 poles; thence N 59 W 45 poles to an ash; thence N 30 15 E 46-2/5 poles to a point; thence N 53 30 W 62-1/2 poles to a point; thence N 33 15 E 26-3/4 poles to a white oak; thence S 53 30 E 131 poles to the center of the highway; thence crossing said highway as shown on said map, S 3 30 E 39-3/4 poles to a hickory; thence S 85 15 W crossing said highway as shown on said map 3-1/8 poles to the center of said highway; thence with the center of same, S 2 45 W 12 poles to the BEGINNING, containing 44.5 acres, as per map hereto attached.

Tract No. 2, containing 18.5 acres, located on the old Saltville Road, and described by metes and bounds as follows per map attached:

BEGINNING at a point in the center of the old Saltville Road; thence S 62 15 W 67 poles to a point; thence N 37 W 12-1/2 poles; thence N 55 30 E 1-1/8 poles; thence N 37 30 W 22-7/8 poles; thence N 8-1/2 30 E 8-3/4 poles; thence N 49-3/4 E 48 poles; thence N 51 E 12 poles to the center of the road leading to the old Ryburn or Dunn house, marked Ryburn House on map; thence with center of same N 64 30 E 17-3/5 poles to a point; thence N 73 30 E 6 poles to the center of the old Saltville Road; thence with the center of same, S 3 45 E 41 poles; thence S 27 E 4-3/4 poles to the BEGINNING, containing 18-1/2 acres as per map attached.

Tract No. 3, containing 31.8 acres; located on Highway No. 91, on the highway leading south from Highway 91, passing the residence of the late J. H. Clark, bounded on the east by the highway leading toward Washington Springs, and described by metes and bounds as follows:

BEGINNING at a point in the intersection of Highway No. 91 and the highway leading from Highway No. 91 to the late residence of J. H. Clark and wife; thence with the eastern right-of-way of said Highway No. 91, N 12 W 531 feet to a point; thence leaving said highway, S 76 30 E 682 feet; thence N 19 15 E 449 feet; thence S 83 15 E 1025 feet to the center of the Washington Springs Highway; thence with center of same, S 6 15 W 1172 feet to the center of the highway, passing the residence of the late J. H. Clark; thence with the center of same, N 64 W 665 feet; thence N 69 30 W 300 feet; thence N 75 15 W 400 feet; thence N 78 W 300 feet to the BEGINNING, containing 31.8 acres, per map attached.

Tract No. 4, containing 16 acres, located on Highway No. 91, near McCall's Gap, described by metes and bounds as follows:

BEGINNING at a point in the eastern side of said highway right-of-way; thence N 63 45 E 218 feet; thence N 89 15 E 84 feet; thence N 82 15 E 334 feet;

thence N 87 30 E 180 feet; thence S 83 E 117 feet to a locust stump; thence N 17 E 165 feet; thence N 20 E 89 feet; thence N 8 30 E 200 feet; thence N 34 30 E 250 feet; thence N 29 30 E 330 feet to a locust stump, marked on said map as the beginning point; thence S 77 30 W 1056 feet; thence N 28 30 E 214 feet; thence N 20 15 E 130 feet; thence S 36 30 W 760 feet; thence S 13 E 100 feet; thence S 20 15 W 130 feet; thence S 42 E 98 feet; thence S 28 E 103 feet; thence S 25 15 W 84 feet; thence S 31 45 W 53 feet; thence S 33 15 E 20 feet to the point of BEGINNING, containing 16 acres, per map attached.

Tract No. 5, what is known as the Dr. Fullen Clark house, located in the town of Glade Spring, Virginia, on the highway leading from Glade Spring to Saltville, consisting of a two story house and lot.

We assigned to Samuel D. Clark the following described tracts of land:

Tract No. 1 in fee simple, containing 52 acres, located on the old Saltville Road, and described by metes and bounds as follows:

" BEGINNING at a point in the center of the old Saltville To Glade Spring Highway; thence S 50 45 W 7-1/3 poles to a stone; thence S 61 30 W 53 poles to a point east of the creek shown on said map; thence N 37 W 24-1/4 poles to a point; thence S 55 30 W 1-1/2 poles crossing the creek; thence N 37 W 8-7/8 poles to a point; thence crossing the creek, N 62 15 E 67 poles to a point in the center of the old Saltville Road; thence with same, N 27 E 4-3/4 poles; thence N 3 45 W 41 poles; thence N 5 30 E 21-3/5 poles; thence N 4 30 E 30 poles; thence leaving the road N 85 30 E 3-1/8 poles to a hickory; thence N 85 30 E 33 poles to a point; thence S 27 E 9 poles; thence N 56 30 E 12-1/2 poles; thence S 34 45 E 38-3/4 poles; thence N 79 15 E 6-11/25 poles; thence S 16 45 E 18 poles; thence S 17 45 E 24-1/2 poles to the 9-1/2 acre tract shown on said map; thence S 70 15 W 94 poles to the center of the Glade Spring Highway; thence with the center of same, S 27 E 25-1/3 poles to the BEGINNING, containing 52 acres," per map attached.

There is also assigned to Samuel D. Clark, subject to the provisions in the will of his mother, Estella R. Clark, and in accordance with the decree of February 16, 1945, the following described tract of land, per map attached, containing 9-1/2 acres, located on the old Saltville Road, and described by metes and bounds as follows, to-wit:

BEGINNING at a point in the center of the Highway; thence N 27 W 25-1/3 poles; thence leaving the highway, N 70 15 E 94 poles; thence S 20 15 E 23-1/2 poles; thence S 88 30 W 49 poles to double chestnut stump; thence S 50 45 W 46 poles to the BEGINNING, containing 9-1/2 acres, per map attached, on which tract is located a house and barn, and this 9-1/2 acre tract which is assigned to Samuel D. Clark is subject to the conditions set forth in the will of his mother, Estella R. Clark, and the provisions of the decree of February 16, 1945.

There is also assigned to Samuel D. Clark what is known as the Arnett House and lot, located on the Glade Spring to Washington Springs Highway, and fronting on said Highway, in fee simple, on which lot is located what is known as the Arnett House.

We assign to Rachel Faris Clark, widow of William Rogers Clark, and William Rogers Clark, Jr., sole heir at law of William Rogers Clark, deceased, the following described tract of land, containing 235 acres, the widow, Rachel Faris Clark, being entitled to her dower, as provided by law, in a portion only of said

235 acres, and the remainder in fee simple, subject to said dower, to William Rogers Clerk, Jr., the widow, Rachel Faris Clark, being entitled to have assigned to her, her dower in a portion of the 235 acres shown on map attached, and is not to have any dower in that portion shown on the map, marked "fee simple tract of William Rogers Clark," but we do not undertake to assign any specific amount as dower to the widow; we treated the J. H. Clark and Estella R. Clark estates as a unit, so far as possible, and a large portion of the lands assigned in this tract is out of the J. H. Clark estate, and we, therefore, recommend to the Court that the widow be not entitled to dower in a certain portion of the 235 acre tract shown on the map, which tract we deem would have been equal in value to the share of William Rogers Clark, Jr. in the estate of Estella R. Clark, and the entire tract assigned to the widow, Rachel Faris Clark, and William Rogers Clark, Jr., is described by metes and bounds as follows:

BEGINNING at a point in the R. C. Gwyn line; thence N 78 8 E 3140 feet to the Robinson line; thence N 2 30 W 1328 feet; thence N 61 40 E 25 feet; thence N 37 W 400 feet; thence S 55 30 W 25 feet; thence N 37 W 353 feet; thence N 55 30 E 18 feet; thence N 37 W 376 feet; thence S 82 W 1168 feet; thence S 32 30 E 736 feet; thence S 70 30 W 383 feet; thence N 17 42 W 1069 feet to the Dr. Inscor line; thence S 80 W 920 feet; thence N 72 45 W 435 feet; thence S 33 45 W 455 feet; thence N 25 W 237 feet; thence S 67 38 W 797 feet; thence S 4 30 E 1544 feet; thence S 14 40 E 440 feet to three elms; thence with the Gwynn line, S 69 22 E 1232 feet to the BEGINNING, containing 235 acres, per map attached.

We assign the foregoing tracts to the foregoing persons in fee simple or subject to the conditions attached, but we recommend that the parties do not be permitted to take possession of the respective shares so assigned until November 1, 1945, and same be operated as hereinafter mentioned in this report, but we recommend that each of the parties shall have what is termed seeding rights on his or her respective share, that is, any party that is assigned a tract of land shall have the right to enter same for the purpose of seeding as soon as the present crop is severed from the land.

In making the foregoing partition and division, we followed the terms of the decree to the best of our ability, and divided the shares in equal value, in accordance with the terms of the decree. ✓

Personal Property in the J. H. Clark Home

With reference to the tangible personal property in the Clark residence, we attach hereto a list of same, marked Exhibit 1, which we ask to be treated as a part hereof. We have placed a valuation on each item of personal property. It is our view same is not divisible in kind among the parties entitled thereto. It is our recommendation, in view of the fact that two of the daughters, namely: Sarah Kathryn Clark and Margaret Virginia Clark, reside in the home, both of whom are unmarried, that these two parties be allowed to purchase the property in the home at the valuation which we have placed thereon, for cash, which we deem to be the fair market value. If they do not want to take the property at this price, we recommend that same be sold and the proceeds divided among the parties entitled thereto, as their respective interest appears.

Personal Property of J. H. Clark

As to the tangible personal property of J. H. Clark, we attach a list of

same, including money in bank as of April 2, 1945. We endeavored to place a fair market value on all items of personal property pointed out to us as of the date we appraised same, namely: April 2, 1945. We went upon the premises and carefully viewed same.

It has come to our attention that the farms of J. H. Clark and Estella R. Clark have been operated, since the death of Mr. and Mrs. J. H. Clark, by Sarah Kathryn Clark and her sister, Margaret Virginia Clark, who reside on the real estate. At the time we inspected the property, all the parties were absent except the two above named, one in military service. In view of this fact, we recommend to the Court that Miss Sarah Kathryn Clark be appointed Receiver by this Court to take charge of and manage the personal property, and that she be required to give bond, and that she be permitted to sell the lambs and wool on the market, and also be permitted to sell the cattle and all other items of personal property which she deems necessary to be sold, and account for the proceeds; that she be permitted to operate the farm until November 1, 1945, at which time we recommend that all the crops now growing on the premises, as well as the remainder of the attached list of personal property, and that all remaining tangible personal property be sold at auction and the proceeds divided among the parties entitled thereto in accordance with their respective interest therein.

It is our opinion that the tangible personal property located on the farm is not divisible in kind among the parties, and that same should be sold.

It is our further opinion if this personal property is sold at the present time and the lands divided, this will injure the value of the farm because of the scarcity of farm machinery. It has come to our attention that the crops have been planted on the land without regard as to how the farm would be divided, for instance, there are barns on one share and crops on another share.

We respectfully request that this report, if same is adopted, become effective as to possession of real estate as of November 1, 1945, and that thereupon sale be held of the personal property and crops growing on the land, less any amounts sold by the Receiver; that the Receiver be permitted to operate the town properties, collect the rents, issues and profits therefrom, namely: two houses, and that the Receiver be paid a reasonable fee for her services.

We further recommend that the Receiver, Miss Sarah Kathryn Clark, if she is appointed, have authority to sell and market the tobacco and account for the proceeds, after November 1, 1945.

We further recommend that the personal property hereinbefore described be sold as soon after November 1, 1945, as possible, at public sale. We are of opinion that same cannot be divided in kind among the parties entitled thereto.

So far as we know or are advised, there is no personal property on the farm belonging to Mrs. Estella R. Clark. However, if there is any, we recommend that same be sold in accordance with the terms of this report.

The undersigned Commissioners employed P. L. Cole, C. E., to assist us in making surveys of the real estate.

Respectfully submitted.

B. B. Huff
M. L. Robinson
Noell Craig
W. J. Johnson
S. C. Copenhaver

Commissioners' Fees

B. B. Huff	40.00	4 days
M. L. Robinson	40.00	4 days
W. J. Johnson	40.00	4 days
Noell Craig	40.00	4 days
S. C. Copenhaver	40.00	4.00
P. L. Cole Survey & expense	\$129.50	

Household furniture

(Back kitchen)

1 wash stand	1.00
1 cream separator	20.00
2 tables	2.00

(kitchen)

6 straight chairs	3.00
1 large table	1.50
2 small tables	5.00
1 stove	75.00
1 set cooking utensils	3.00

(side porch)

1 table	1.00
1 wardrobe	1.00

(dining room)

1 large radio	10.00
1 cupboard	5.00
1 sideboard	5.00
1 table	7.00
1 stove	12.00
1 davenport & 2 chairs	12.00
1 rocking chair	1.50
3 straight back chairs	4.50
1 lot of dishes and chinaware	5.00
1 small lot of silverware and cutlery	2.50

(living room)

1 stove	7.00
1 set of furniture (settee & 2 chairs	12.00
1 library table	4.00
1 piano	75.00
1 rocking chair	2.50
1 magazine rack & book case	1.00
1 hall tree	1.00

(front room)

1 desk	5.00
1 radio	7.50
1 chair	2.00
1 lot pictures and ornaments	10.00
1 clock	3.00
1 lot books	5.00

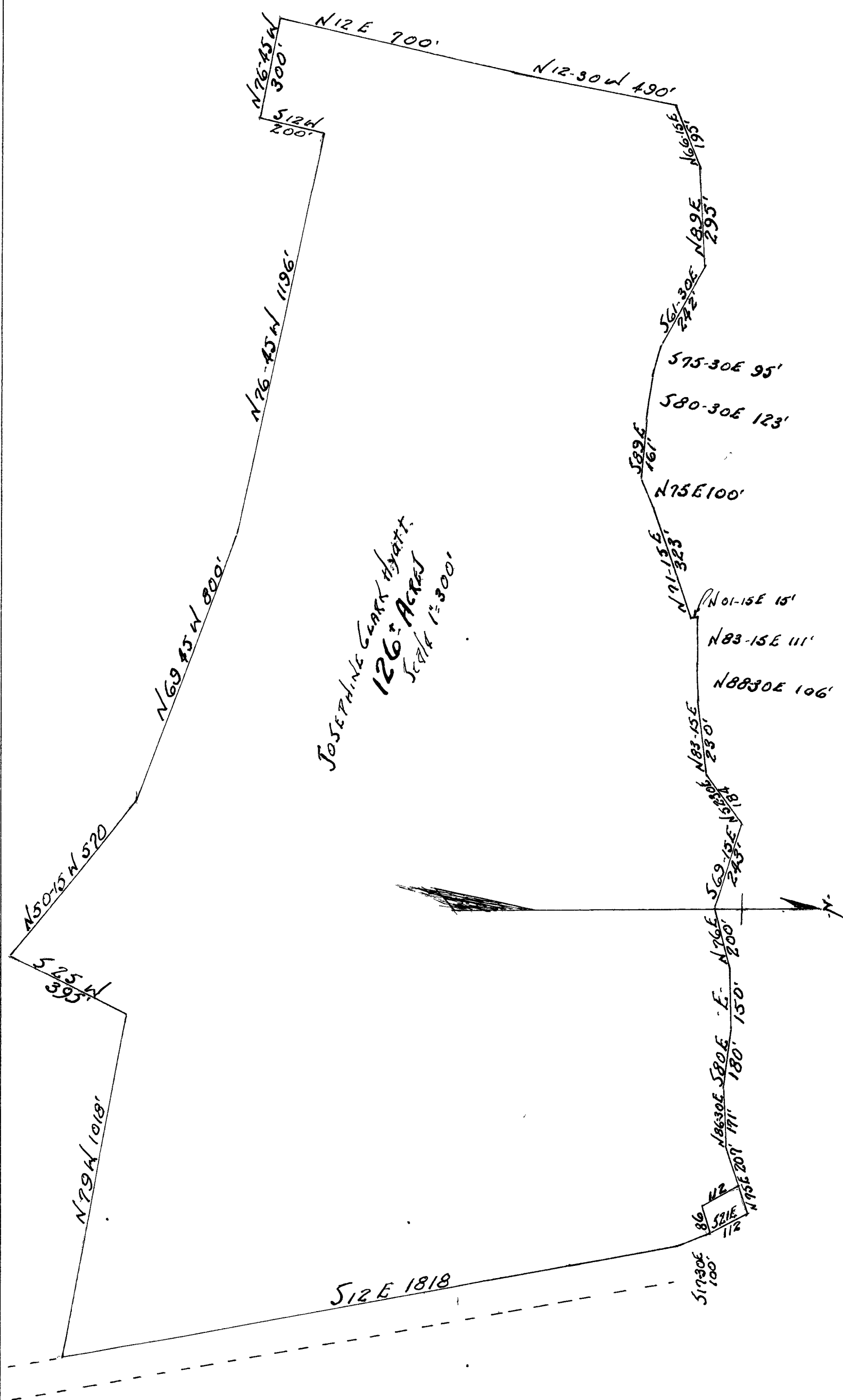
(bath room)	
1 dresser	4.00
(hall)	
1 wash stand	4.00
1 stove	5.00
2 iron bed steads	2.50
(back room)	
1 dresser	5.00
1 chair	.50
2 tables	2.00
1 bed	7.50
1 wash stand	2.00
1 trunk	1.50
(side room)	
1 bed & springs	5.00
1 dresser	3.00
1 table	1.00
1 wash stand	.50
1 trunk	.50
various articles of bedding	20.00
1 chair	<u>1.00</u>
	\$370.00

Farm Machinery

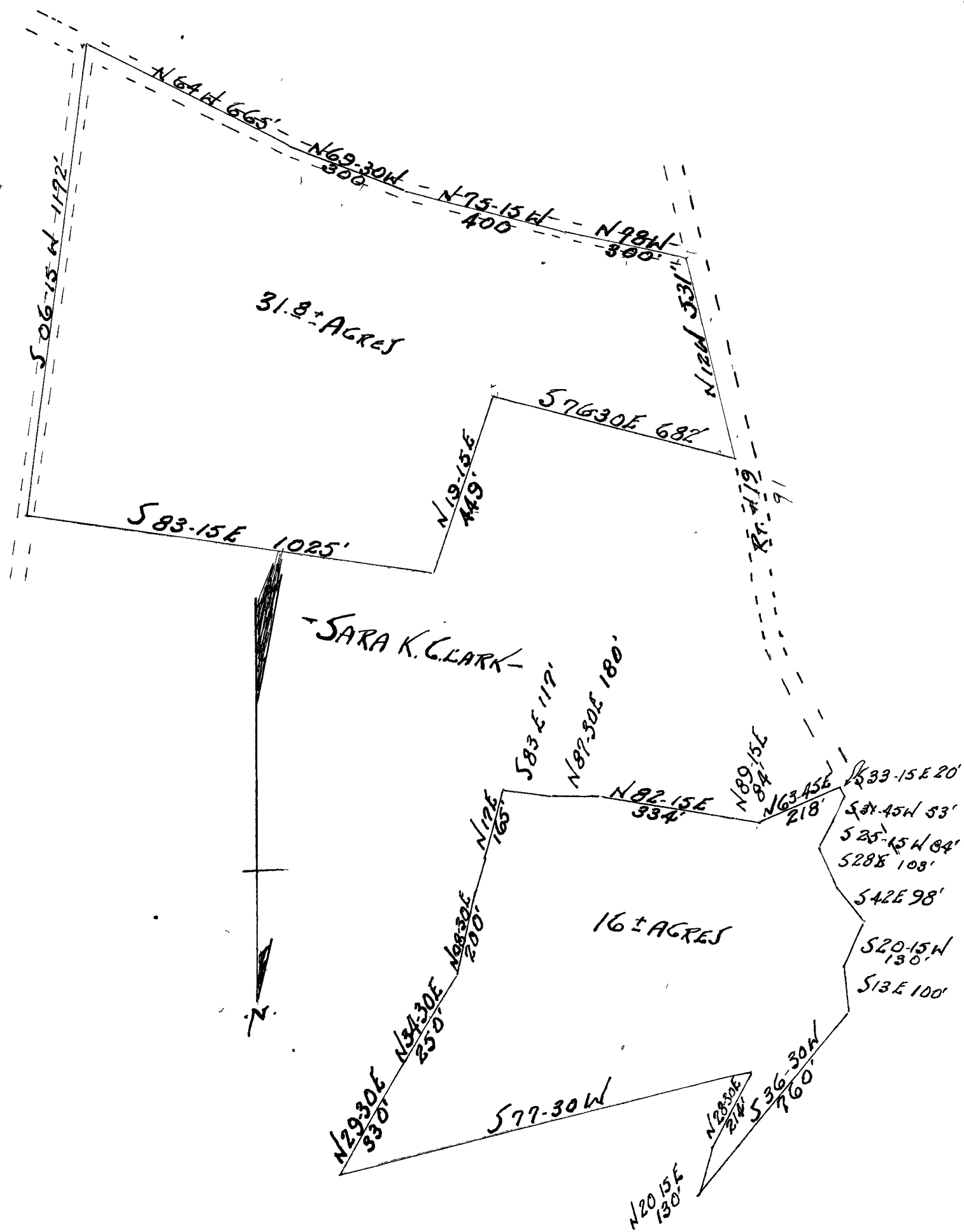
1 binder	20.00
2 mowing machines	75.00
1 drill	30.00
1 hayrake	10.00
1 disc	25.00
2 wagons	100.00
1 double row corn planter	35.00
1 single " " "	20.00
1 4-foot cultivator	1.00
3 40 Oliver plows	40.00
3 3-ft. corn row plows	9.00
1 manure spreader	50.00
1 sweep rake (broken, no value)	
1 hammer mill	100.00
1 corn sheller for motor	12.00
1 corn sheller (hand)	.50
1 silo cutter	100.00
1 wooden A harrow	2.00
1 double iron	5.00
5 hoes	1.60
6 forks	6.00
2 long handle shovels	1.25
1 scoop shovel	1.00

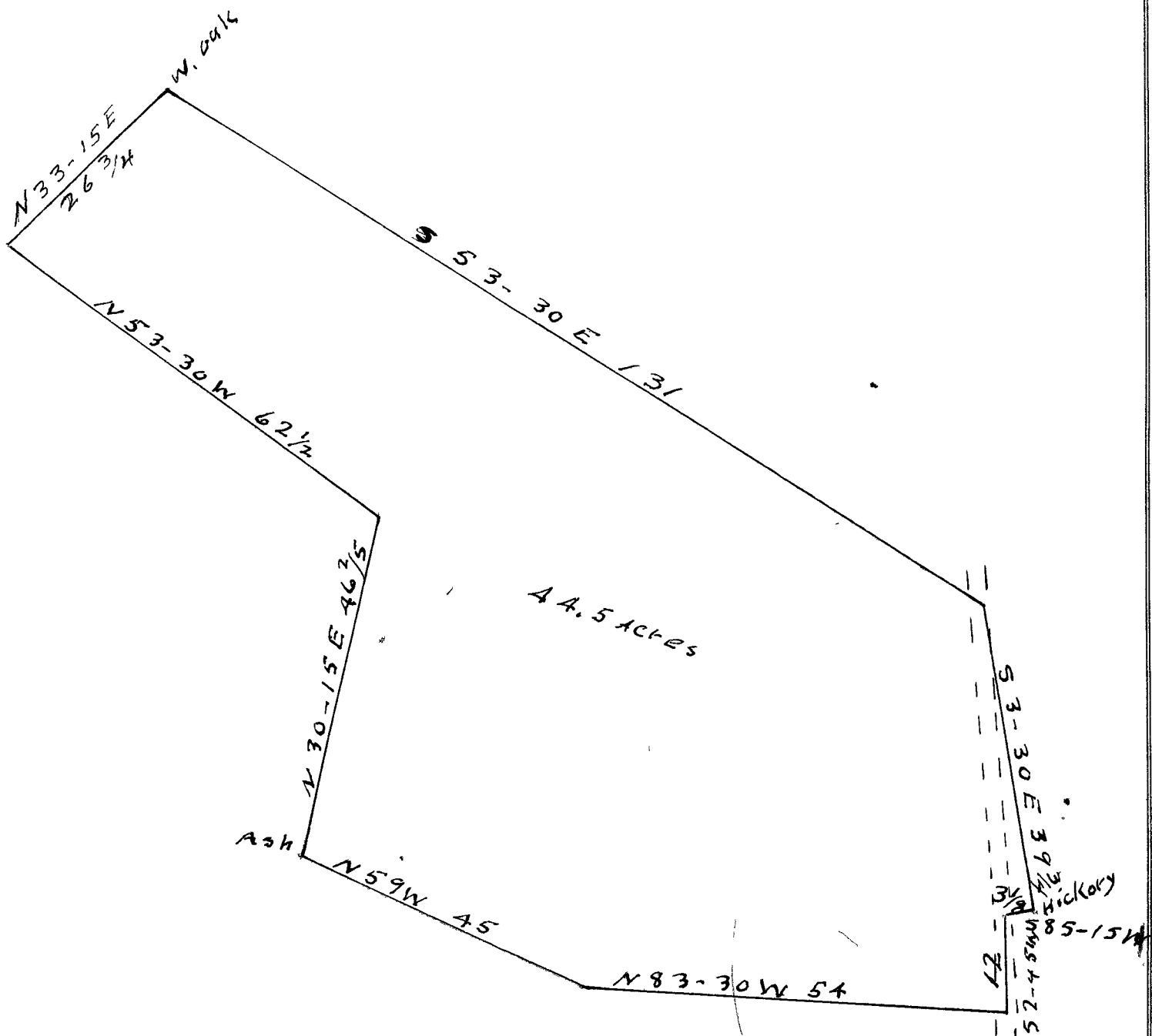
1 scoop fork	2.00
1 cross cut saw	1.00
1 hand saw	1.00
2 post hole diggers	.75
6 sets harness	50.00
4 scythes	2.00
1 grubbing ax	1.00
1 pr. electric sheep shears	20.00
1 pr. crank sheep shears	5.00
corn in cribs, approximately 175 bu.	
wheat in granaries, approximately 150 bu.	
hay stacks 10	
wheat stacks for feed 3	
fodder, with corn, approximately 200 stands	
2 rolls woven wire	18.00
2 rolls barbed wire	3.00
150 bags Government fertilizer	
money in bank up to Jan. 31, 1945	1958.07
Livestock	
6 work horses	200.00
1 mule	25.00
1 riding horse	75.00
68 ewes, 66 lambs	884.00
3 rams	39.00
12 2½ yr. old steers	1200.00
2 milk cow <u>e</u>	250.00
28 cows & young heifers	1820.00
1 bull	65.00
26 long yearlings	1647.50
24 short yearlings	900.00
1 cow	65.00
1 hog	30.00
	<u>30.00</u>
	\$9906.67



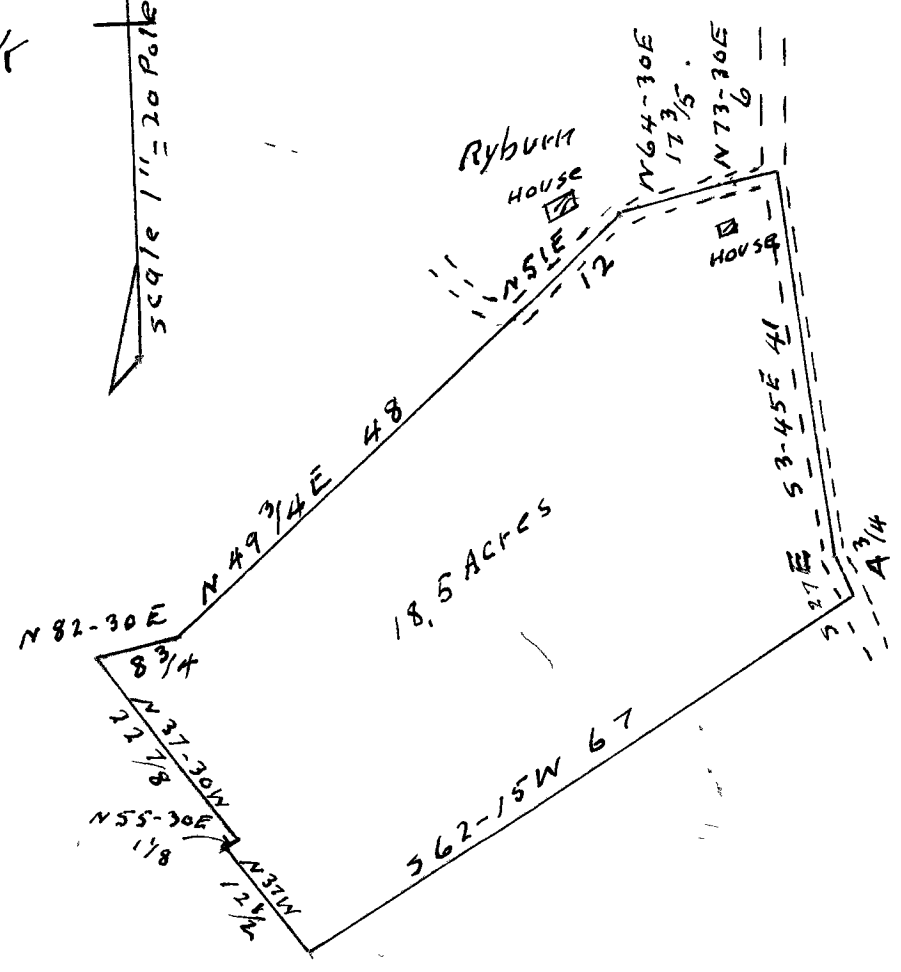
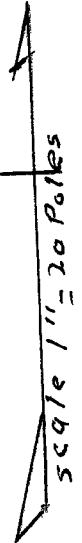


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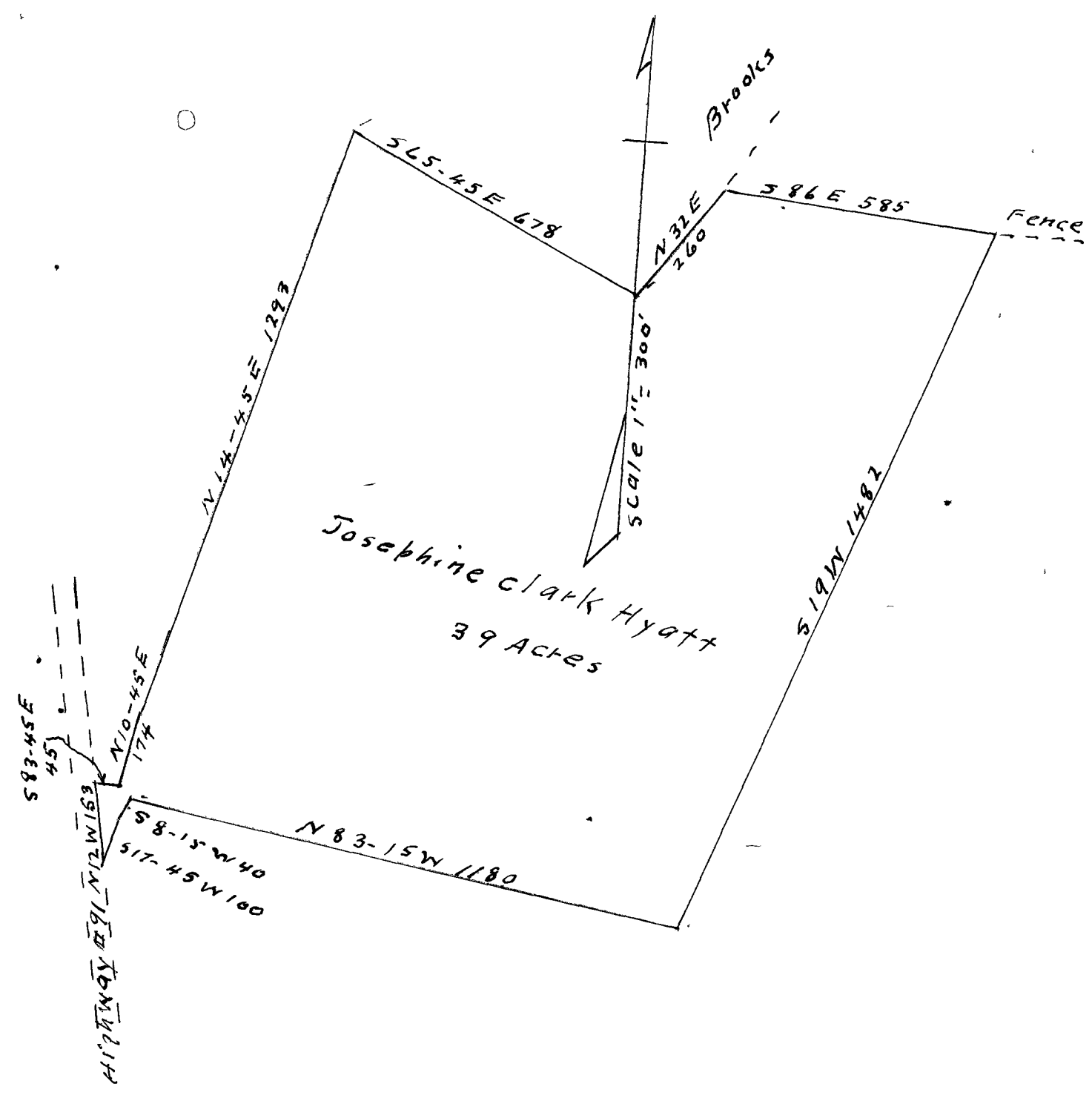


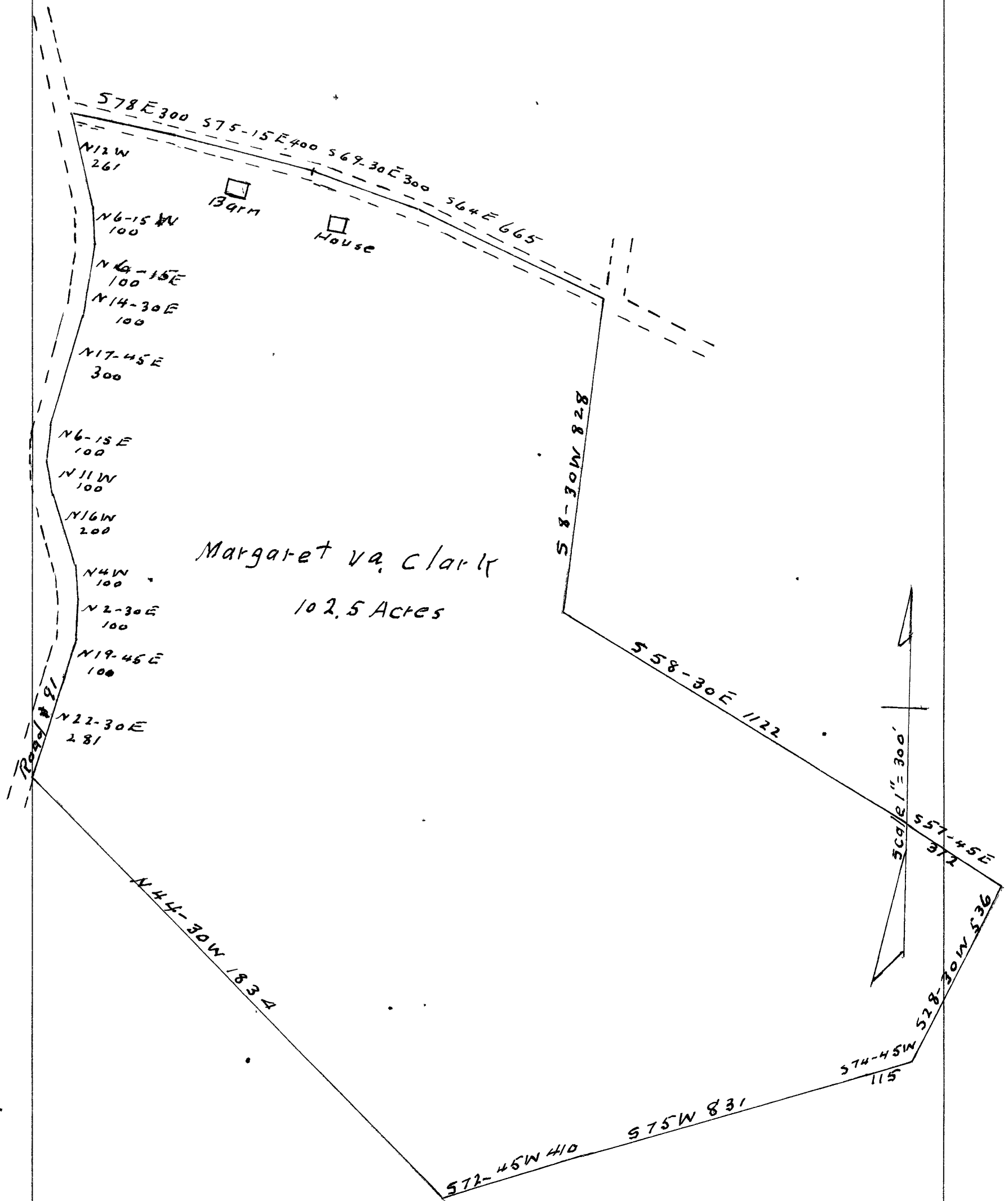


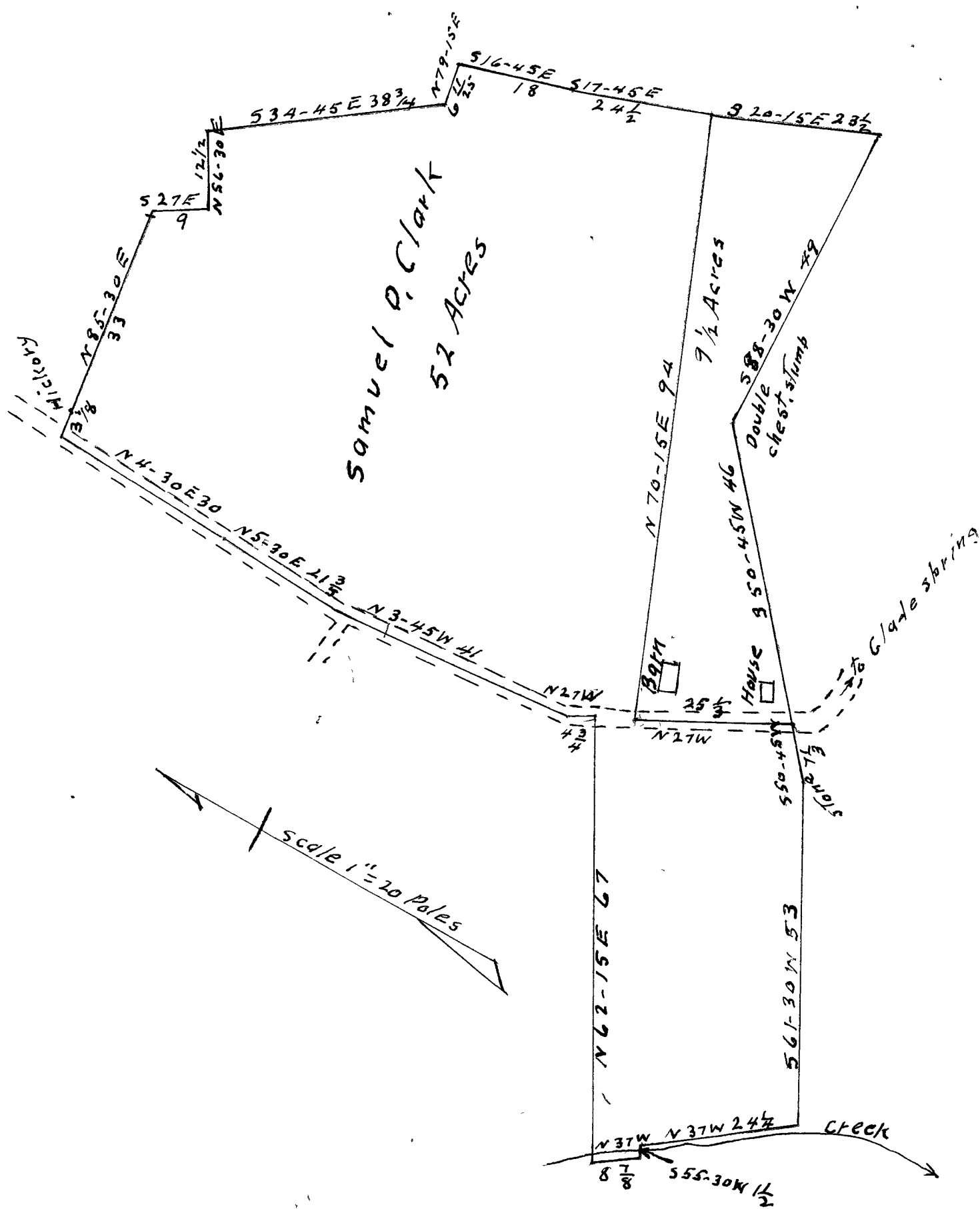
Sara K. Clark

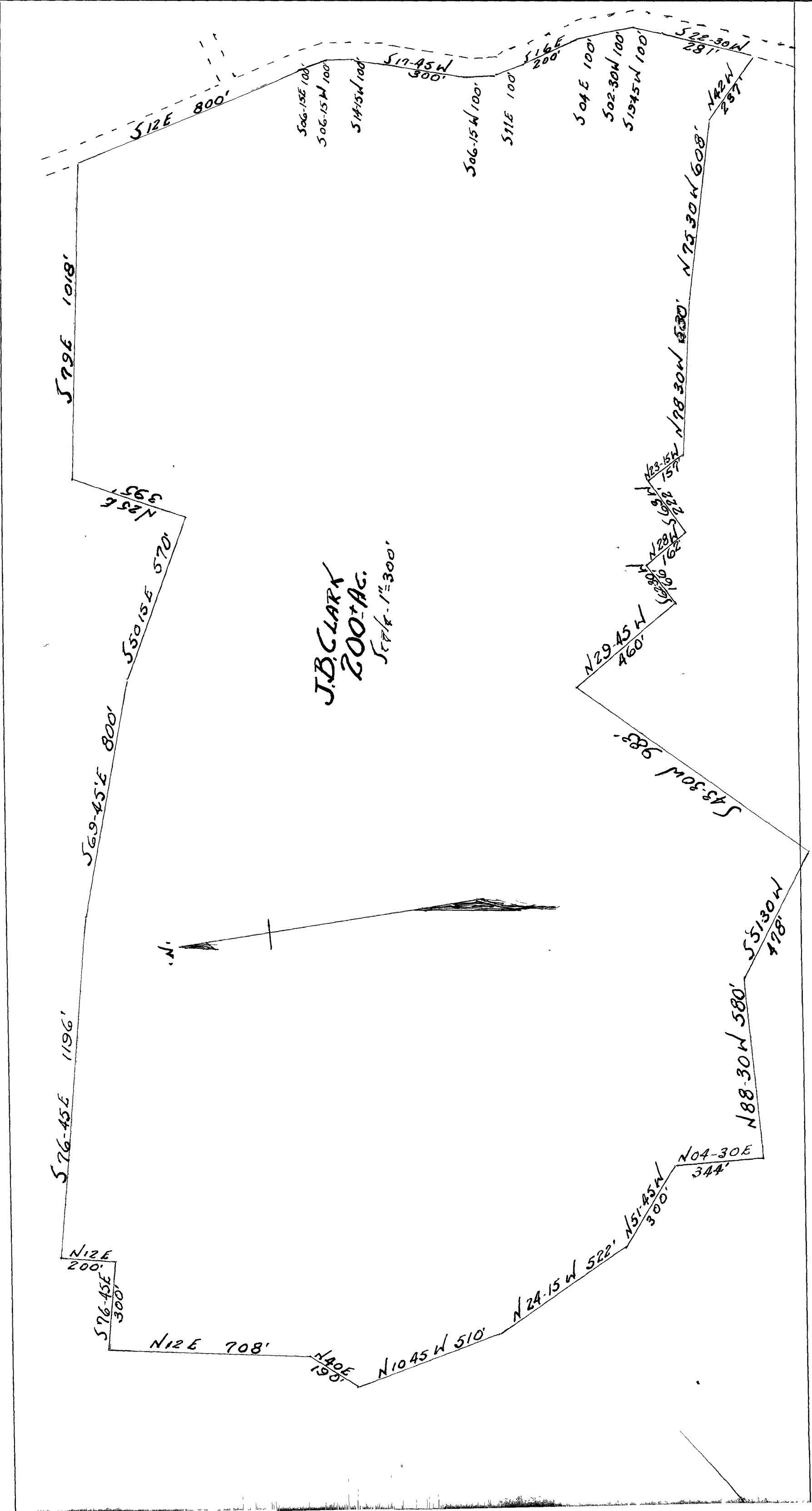


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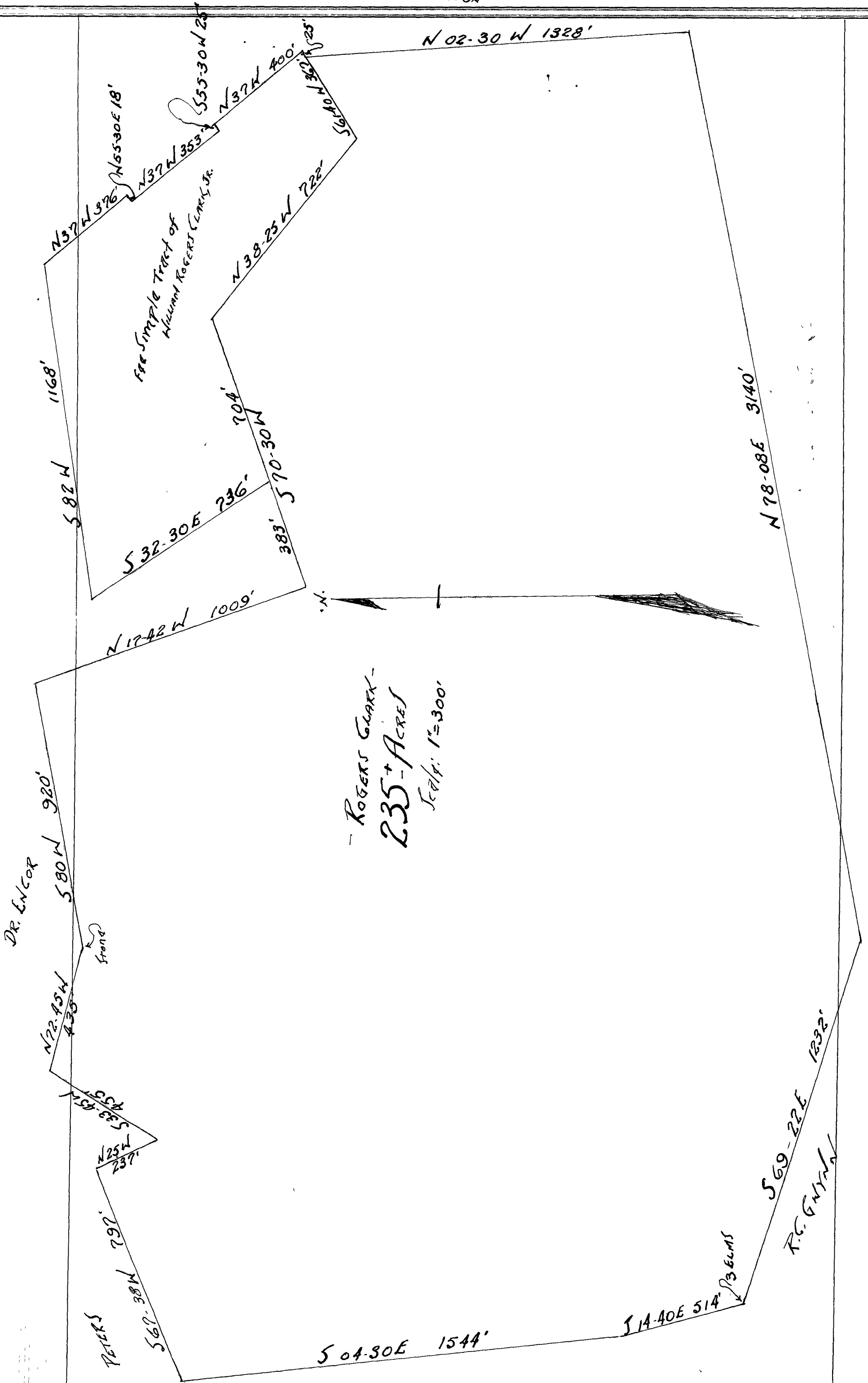






27115 H

Robinson



VIRGINIA: Circuit court of the county of Washington, on Saturday, the twenty-first day of July, in the year of our Lord, nineteen hundred and forty-five.

PRESENT: The Honorable Walter H. Robertson, Judge.

SARAH KATHRYN CLARK and
MARGARET VIRGINIA CLARK

vs.

DECREE

JOSEPHINE CLARK HYATT, et als

This cause came on this day to be again heard upon the amended answer of Samuel D. Clark and Mildred D. Clark; upon the report of commissioners, B. B. Huff and others, with exhibits attached; upon the record at large and was argued by counsel.

Upon consideration of all of which, it appearing to the Court that by decree entered in this cause on the 16th day of February, 1945, the commissioners therein appointed, after being duly sworn, together with P. L. Cole, Civil Engineer, employed by said commissioners pursuant to said decree of February 16, 1945, went upon the lands mentioned and described in the bill and proceedings in this cause, and made partition of the real and personal property described in this cause, in accordance with the terms of their report filed in this cause.

It appearing to the court that since the entry of said decree of February 16, 1945, Samuel D. Clark and Mildred D. Clark, filed an amended answer herein to the effect that there was a child born to Mildred D. Clark and Samuel D. Clark on November 3, 1942, the child having lived only a few hours and died, the child's name being Dianna Lynn Clark; that this is the only child born of this marriage; that the said Samuel D. Clark and Mildred D. Clark have filed an amended answer herein, setting up this fact, which is undisputed in the record; that in view of this amended answer, the Court is of opinion that the decree entered herein on the 16th day of February, 1945, with reference to the share of Samuel D. Clark in the real estate of Estella R. Clark, should be changed in the manner herein set forth, which decree adjudged that the share of Samuel D. Clark in the real estate of Estella R. Clark would be one-sixth for life, and the remainder in fee to any child or children born to Samuel D. Clark, if none, then to his brothers and sisters, or their descendents, in equal portions, and the interest of Samuel D. Clark in the personal estate devised to him under the will of his mother, Estella R. Clark, would be the net income from one-sixth thereof, for life, and the remainder in fee simple to any child or children born to Samuel D. Clark, if none, then to his brothers and sisters, or their descendents, in equal portions.

The Court is of opinion and it is accordingly adjudged, ordered and decreed that at this stage the 9-1/2 acre tract assigned to Samuel D. Clark in the report of the Commissioners shall be subject to the conditions set forth in the will of his mother, Estella R. Clark; likewise any amounts going to Samuel D. Clark out of the personal estate of Estella R. Clark shall be subject to the provisions in said will, and the said Samuel D. Clark's interest in the personal estate obtained by him under the will of Estella R. Clark shall be held in trust by a Trustee appointed by this Court, and Samuel D. Clark shall be entitled to the net income therefrom for and during the natural life of Samuel D. Clark, and the remainder interest in said funds at the death of Samuel D. Clark shall be determined by

the conditions and facts that may now exist or hereafter arise, and in the manner provided by law, and the 9-1/2 acre tract shall likewise be held subject to the terms and conditions of the will of Estella R. Clark and Samuel D. Clark shall hold the 9-1/2 acre tract for life, and the remainder shall be subject to the conditions and provisions of the will of Estella R. Clark. The Court does not undertake at this stage to ascertain and determine the remaindermen interest in said 9-1/2 acre tract of real estate and personal property going to Samuel D. Clark under the will of Estella R. Clark as same may be determined at a later date under the facts and circumstances now or which may then exist, and in the manner provided by law, and this decree changes the decree of February 16, 1945, in the manner and form herein set forth and not otherwise.

It is further adjudged, ordered and decreed that the Dr. Fullen Clark house, located in the town of Glade Spring, which was assigned by the commissioners in their report to Sarah Kathryn Clark, shall be given to her in fee simple, this in view of the fact that the commissioners treated as a unit in making the partition among the heirs, the real estate of which J. H. Clark and Estella R. Clark died seized and possessed.

Upon consideration of said report of said commissioners, there being no exceptions to same, and the Court perceiving no just cause for exception thereto, the report of the said Commissioners is hereby ratified, approved and confirmed in all respects, Partition of said real estate in the manner & form set forth shall be held firm and stable but subject to the provisions set forth in this decree,

With reference to the personal property of J. H. Clark and the real estate of J. H. Clark and Estella R. Clark, the commissioners have recommended in their report that Sarah Kathryn Clark, one of the heirs at law of J. H. Clark and Estella R. Clark, be appointed Receiver by this Court to manage, operate and control the real estate and certain personal property mentioned and described in the report, until November 1, 1945, and recommended to the Court that the said Sarah Kathryn Clark be appointed Receiver, with power to manage, operate and control the property mentioned in the report of said commissioners, and the Court being satisfied that this is a proper case for the appointment of a Receiver, and it appearing that none of the parties in interest have objected to the appointment of the Receiver, and certain parties, through their attorney, have agreed that this is a proper case for the appointment of a Receiver, as recommended by the commissioners, it is, therefore, adjudged, ordered and decreed that Sarah Kathryn Clark be, and she is hereby appointed Receiver to manage, operate and control said real and personal property mentioned and described in the report of the Commissioners until November 1, 1945; that said Receiver, upon her qualification, shall have full power and authority to manage, operate and control said real estate and personal property mentioned and described in the report of the commissioners, and said Receiver, upon her qualification, shall keep books of account, and shall keep a strict account of the receipts and disbursements, and shall have power to make sale of any personal property which the commissioners have recommended she should sell, and she shall account for the proceeds thereof; that she be permitted to operate the farm and two town houses, and collect the rents and profits therefrom until November 1, 1945, at which time said Receiver shall make a report to this Court, giving an account of her actions hereunder.

Before acting hereunder, said Receiver shall give bond, with approved surety, to be approved by the Clerk of this Court, in the penalty of \$3000.00, for the faithful performance of her duties hereunder.

It is further adjudged, ordered and decreed that in accordance with the recommendations of the Commissioners, Sarah Kathryn Clark be be allowed to act as Receiver after November 1, 1945, to market the tobacco grown on the farm during 1945, and she shall report her actions to the Court within a reasonable time after making sale of said tobacco and converting same into cash, and said Receiver shall be entitled to her reasonable expenses and in addition thereto, a reasonable compensation for her services, the compensation to be ascertained and determined when settlement is made.

In accordance with the report of the commissioner, Sarah Kathryn Clark and Margaret Virginia Clark shall have the option and privilege to purchase the personal property in the J. H. Clark mansion house at the price ascertained and determined by the commissioners, and as shown by their report, but if they do not want to take this property at this price, then same shall be sold in the manner hereinafter provided, and the proceeds apportioned among the parties entitled thereto as their interests may appear, this in accordance with the report of the commissioners as contained therein.

As to the personal property of J. H. Clark shown by the report of the commissioners, same is not divisible among the parties entitled thereto, and the commissioners have recommended that same be sold after November 1, 1945, it is accordingly adjudged, ordered and decreed that said property shall be sold for partition, and being the personal property mentioned and described in the report of said commissioners.

For the purpose of making said sale, T. L. Hutton is hereby appointed commissioner for the purpose, and said property shall be offered for sale at public auction, for cash, and in the event the two parties mentioned, namely: Sarah Kathryn Clark and Margaret Virginia Clark, do not take the personal property in the J. H. Clark home, same shall likewise be sold as said commissioners have directed; said property shall be advertised for sale by handbills and by advertisement in some newspaper published or having general circulation in Washington County, Virginia, in one issue, the handbills to be posted for a period of at least five days prior to the sale date in three or more public places in Washington County, Virginia, and said commissioner may, in the discretion of said commissioner, advertise by any additional means which the said commissioner may desire.

Before acting hereunder, said commissioner shall execute bond in the penalty of \$5000.00 before the Clerk of this Court, conditioned for the faithful performance of said commissioners duties hereunder.

And what said Commissioner shall do hereunder, said commissioner shall report to this Court.

The Court doth appoint The Bank of Glade Spring, Glade Spring, Virginia, as Trustee, to hold, manage and invest the share of Samuel D. Clark out of the personal estate devised to him under his mother's will, the entire corpus of said fund to be held by said Trustee and the income therefrom shall be paid to Samuel D. Clark for and during the natural life of Samuel D. Clark, and the

remainder shall be held to be apportioned among such parties as may be entitled thereto in accordance with the provisions of the will of Estella R. Clark, and under the provisions of any lawful decrees or orders of a Court of competent jurisdiction hereafter made, in the manner provided by law, and said Trustee shall invest and reinvest said funds in whatever securities fiduciaries are permitted by law to invest, under the laws of the Commonwealth of Virginia, and said Trustee shall make its accounting in the manner provided by law.

Before acting as Trustee hereunder, said banking institution shall qualify before the Clerk of this Court, by its duly authorized officers, and enter into bond in the penalty of \$1000.00, conditioned according to law, but without surety as said Trustee is a banking institution, with trust powers, and no surety being required under the laws of the Commonwealth of Virginia.

It appearing to the Court that J. H. Clark during his lifetime agreed to sell to the Trustees of the Glade Spring Presbyterian Church a small tract or parcel of land; that Stella R. Clark signed the deed dated the 15th day of April, 1939, which deed was between Joseph H. Clark and Stella R. Clark of the first part, and the Trustees of Glade Spring Presbyterian Church of the second part, part, which tract of land is described therein as follows:

"A certain lot or parcel of land located in Glade Spring Magisterial District, Washington County, Virginia, on the west side of State Highway between Glade Spring and Saltville, being in the neighborhood of what is known as McCall's Gap, and being more particularly bounded and described as follows:

BEGINNING at a planted rock at back of McCall's Gap Chapel N 72° 15' E 85-1/4 feet to planted rock at edge of right of way of Glade Spring-Saltville Highway; thence following said right of way N 20° 45' W 112 feet to point in middle of Saltville Road; thence following middle of said road S 78° 45' W 117 feet to point opposite rock planted in edge of road; thence across said road S 37° 00' E 123 feet to the BEGINNING."

It appearing that J. H. Clark did not sign and acknowledge said deed, and that same was not acknowledged by Stella R. Clark.

It appearing that the Trustees of the Glade Spring Presbyterian Church, Washington County, Virginia, caused to be erected a church building upon said lot of land, and it appearing from the report of the Commissioners and the maps filed in said cause that this church lot is adjacent to the share assigned to Josephine Clark Hyatt, and it appearing that all the adult parties in interest are willing that said lot of land upon which said church is erected shall be conveyed to the Trustees of the Glade Spring Presbyterian Church, it is accordingly adjudged, ordered and decreed that T. L. Hutton is hereby appointed Special Commissioner to execute a deed, with covenants of special warranty, conveying said lot of land above mentioned and described to the Trustees of the Glade Spring Presbyterian Church.

It is ordered that the decree of February 16, 1945, the report of the commissioners, with maps attached, this decree, as well as the final decree to be entered in this cause, shall be recorded on the deed books of this Court and indexed in the manner provided by law, and the cost of same shall be taxed as a part of the costs of this proceeding.

It appearing that other than the Guardian ad Litem, T. L. Hutton is the only attorney of record for the parties in this cause, the Court doth ascertain

that the said Hutton shall be allowed as a reasonable fee for his services herein the sum of \$600.00, same to be taxed as a part of the costs herein, and E. H. Moore, Guardian ad Litem, shall be entitled to receive a fee of \$25.00 for his services herein, same to be taxed as a part of the costs of this proceeding.

And this cause is continued.

"I have seen this decree.

E. H. Moore, Guardian ad Litem."

A Copy - Teste:

Bertha Hardin, Deputy Clerk.

VIRGINIA: In the Clerk's Office of the Circuit Court of Washington County, the 24th day of December, 1945.

The foregoing writing was delivered to the Clerk of the Circuit Court aforesaid, on the day above mentioned, and admitted to record at 10:00 o'clock A. M., in Deed Book No. 209, Page 401.

Teste:

Bertha Hardin
Deputy Clerk.

- - - - 0 0 0 0 - - - -

Sarah Kathryn Clark, | THIS DEED, made and entered into this the 30th day of
To | October, 1945, by and between SARAH KATHRYN CLARK,
Nannie M. Smith, | unmarried, party of the first part, and NANNIE M. SMITH,

party of the second part.

WITNESSETH: That for and in consideration of the sum of \$3,350.00, cash in hand paid, the receipt of which is hereby acknowledged, the first party hereby grants, sells, transfers and conveys unto the second party, with covenants of general warranty of title, that certain tract or parcel of land situate, lying and being in the corporate limits of the Town of Glade Spring, and being known locally as the late Dr. A. F. Clark home, on which lot is located a dwelling, and said lot fronts on the highway leading from Glade Spring to Saltville.

A metes and bounds description of said lot is set forth in that certain deed dated December 11, 1928, between Anna S. Hutton and husband, of the first part, and Joseph H. Clark, of the other part, of record in the Clerk's Office of Circuit Court of Washington County, Virginia, in Deed Book 128 page 387, wherein the said Joseph H. Clark was conveyed one-half undivided interest in said lot; the other one-half interest was owned by Estella R. Clark, wife of Joseph H. Clark, and said description in said deed is as follows, to-wit:

BEGINNING at the northwest corner of the lot; thence N 49 E 5-22/25 rods to a stake; S 21 E 10-3/25 rods to a stake; S 64 W 4-37/50 rods to a stake; N 31-3/4 W 8-33/50 rods to the BEGINNING, containing 48 square rods, and being a portion of the lands of which Joseph H. Clark died seized and possessed, and being a portion of the lands of which Estella R. Clark died seized and possessed.

For history of title to this tract see partition proceedings in the Circuit Court of Washington County, Virginia, under style of Sarah Kathryn Clark,

Estella R. Clark, deceased, I, Estella R. Clark of Glade Spring, in the County of
To Washington and State of Virginia, do hereby make, ordain,
Last Will and testament, publish and declare, this to be my last Will and Testament.

1. I order and direct, That my Executors hereinafter named pay all my just debts as soon after my decease as conveniently may be.

2. I order that all my Real Estate remain for the benefit of my children and their Heirs. I order that all my estate, real, personal, or mixed, of every kind and description, and wherever situated be divided equally among my six children.

3. Roger's and Dixon's part to go to their Heirs. If no legal Heirs, it shall pass to their sisters and brothers. It is not to be sold or rented for any debts they may make. I want them to have a home.

4. Should my husband marry again, I desire all my Estate to be turned over to my children. If he remains single, he can have use of Estate as long as he lives or remains single.

5. If Heirs can sell town property to advantage, they can do so, but Roger's and Dixon's part must be placed in trust and the interest used by them.

6. I make, Constitute, and appoint James B. Clark and Bruce Hyatt to be executors without bond, of this, my last Will and Testament, hereby revoking all former wills by me made.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this 21st day of February, A. D., 1938.

Estella R. Clark

This Instrument was, on the day and date thereof, signed, published and declared by the said testator, Estella R. Clark, to be her last will and Testament, in the presence of us who at her request have subscribed our names thereto as witnesses, in her presence, and in the presence of each other.

Clark P. Douglass residing at Glade Spring, Va.

Ray Moore, Jr. residing at Glade Spring, Va.

VIRGINIA: In the Clerk's Office of the Circuit Court of Washington County, the 9th day of April, 1942.

A writing purporting to be the last will and testament of Estella R. Clark, deceased, was this day produced before the Clerk of the Circuit Court of Washington County, Virginia, and the signature thereto was proven by the oath of Ray Moore, Jr., one of the subscribing witnesses, and the signature thereto was also proven by the deposition of Clark P. Douglass the other subscribing witness. It is therefore ordered that said writing be recorded as and for the true last will and testament of the said Estella R. Clark, deceased.

James B. Clark and Bruce Hyatt, who were named as executors in said will, having declined in writing to qualify as executors, on motion of James B. Clark, Josephine Clark Hyatt and Margaret V. Clark, children of the said Estella R. Clark, it is ordered that Sarah Kathryn Clark be, and she is, hereby appointed administratrix with the will annexed of the estate of the said Estella R. Clark, deceased. Thereupon the said Sarah Kathryn Clark took the oath of executrix c. t. a. and together with the Fidelity and Deposit Company, her surety, entered into and acknowledged a bond in the penalty of \$5,200.00, conditioned according to law. A certificate is therefore granted the said Sarah Kathryn Clark for obtaining probate of said will

in due form,

Ordered that James F. McCready, Noel Craig, Mahlon Robinson, Gwin Richardson and George P. Hutton, any three of whom may act, after being duly sworn, do appraise the estate of Estella R. Clark to them shown, and make a report thereof, under their hands, signed by the Administratrix to the Commissioner of Accounts of this Court.

Teste:

W. Y. C. White
Clerk.

Estella R. Clark, deceased, | Virginia: Circuit Court of the County of Washington
To | Estate of Estella R. Clark, deceased.
List of Heirs, | I, the undersigned, who this day qualified

before the Clerk of Circuit Court of the County of Washington as Administratrix c.
t. a. of the estate of Estella R. Clark, deceased, late of the County of Washington
Virginia, on my oath do say that I have made diligent inquiry and that I believe
the following to be a true and correct list together with the ages and addresses
of the heirs of my decedent Estella R. Clark, or of those who would have been her
heirs had she died intestate. I do further declare on oath that my name is Sarah
Kathryn Clark and my post office and street address is Glade Spring, Va.

LIST OF HEIRS

NAME	AGE	RELATIONSHIP	ADDRESS
Josephine Clark Hyatt	38	Daughter	501 Fleming Ave., Frederick, Md.
James B. Clark	34	Son	Philadelphia, Pa.
Sarah Kathryn Clark	31	Daughter	Glade Spring, Va.
William Roger Clark	28	Son	U. S. Army
Samuel Dixon Clark	26	Son	U. S. Army
Margaret Virginia Clark	22	Daughter	Glade Spring, Va.

Given under my hand this 9th day of April, 1942.

Sarah Kathryn Clark, Administratrix
c. t. a.

Subscribed and sworn to before me this 9th day of April, 1942.

W. Y. C. White, Clerk.

VIRGINIA: In the Clerk's Office of the Circuit Court of Washington County, the
9th day of April, 1942.

The foregoing writing was delivered to the Clerk of the Circuit Court
aforesaid, on the day above mentioned, and admitted to record.

Teste:

W. Y. C. White
Clerk.

MINUTES, SULLIVAN COUNTY COURT, MARCH 13th, 1937, TERM

SATURDAY MORNING, MARCH 13th, 1937.

Court met pursuant to adjournment, was present and presiding his Worshipful,
Honorable T. R. Bandy, County Judge, Etc., and H. W. Copenhaver, Clerk of said
Court, when court was opened in due form of law and the following further proceedings
were had and ordered to be entered of record in the Minutes of said Court, to-wit:

WITNESS the following signatures and seals:

State of Virginia,

County of Washington, to-wit:

✓ Ray Wyatt (Seal)

✓ Ella Wyatt (Seal)

I, John M. Kreger, a Commissioner in Chancery of the Circuit Court in and for the County aforesaid, in the State of Virginia, do certify that Ray Wyatt and Ella Wyatt, whose names are signed to the foregoing writing, bearing date on the 8th day of December, 1923, has acknowledged the same before me in my County aforesaid.

Given under my hand, this 8 day of December, 1923.

John M. Kreger, Commis-
sioner in Chancery.

VIRGINIA- In the Clerk's Office of the Circuit Court of Washington County, the 8th day of December, 1923.

The foregoing writing was delivered to the Clerk of the Circuit Court aforesaid, on the day above mentioned, and admitted to record at 11:55 o'clock A.M.

TESTE:

Elizabeth B. Davenport
CLERK.

-----000-----

Minter A. Dunn, et al,

To

Joseph H. Clark,

her husband, Sallie B. Dunn Yates, D.C. Yates, her husband, Cloydine E. Dunn, unmarried, and Walter B. Jackson, Trustee, parties of the first part, and Joseph H. Clark, party of the second part,

THIS DEED, Made this 7th day of July, 1923, by

and between Minter A. Dunn, Edith Dunn Roswell, Charles

J. Roswell, her husband, Florence V. Sheets, R.E. Sheets,

WITNESSETH: THAT in consideration of the sum of \$2525, cash in hand paid, receipt of which is acknowledged, the said parties of the first part do grant unto the said Joseph H. Clark a certain tract or parcel of land located about two miles northwest of Glade Spring, Washington County, Virginia, containing about 44 1/2 acres, being tract #3 in partition division by commissioners of the Circuit Court of Washington County, Virginia, in the Chancery Suit pending in said Court styled S. Estella Clark vs. W.L. Dunn, et als, by decree entered in said cause on the 23rd day of February 1915, said partition proceedings being of record in the office of the Clerk of the Circuit Court of Washington County Virginia, in Deed Book 86, page 39 to 43 inclusive; said tracts hereby conveyed being bounded and described as follows:

BEGINNING in the middle of the Glade Spring and Saltville road, corner to tract #2; thence with lines of same, N 83 1/2 W 54 p to a stake; N 59 W 45 p to an ash Cabel Byers corner, thence with Byers' line N 30 1/4 E 46 2/5 p to stake; N 53 1/2 W 62 1/2 p to stake in line of lot #4; N 33 1/4 E 26.9 p to white oak, corner to lot #4 and in the Litz line, with the said Litz line S 53 1/2 E 131 p to stake on the east side of the Glade Spring and Saltville road, corner to Porterfield land, S 3 1/2 E 39 3/4 p to hickory in said Joseph H. Clark's line; S 85 1/4 W 3 1/8 p to middle of Glade Spring and Saltville road; thence with said road S 2 3/4 W 12 p to the beginning.

But there is excepted from this conveyance 1/2 an acre, more or less, conveyed by M.A. Dunn et als to T.B. Porterfield et als as shown by deed from said Dunn et als to said grantee, of date July 11, 1918, and of record in said Clerk's office in Deed Book 93, page 541.

The said Walter B. Jackson, trustee, conveys with covenants of special warranty and the other parties grantor convey with covenants of general warranty, and they covenant that they have the right to convey said land to grantee; that they have done no act to encumber the said land; that they, the said parties of the first part, will execute such further assurance of said land as may be requisite, and all the grantors in this deed except Walter B. Jackson, trustee, covenant that the grantee shall have quiet possession of the land, free from all encumbrances.

Witness the following signatures and seals.

✓ Minter A. Dunn	(SEAL)	✓ Sallie B. Dunn Yates	(SEAL)
✓ D.C. Yates	(SEAL)	✓ Edith Dunn Roswell	(SEAL)
✓ Walter B. Jackson, Trustee	(SEAL)	✓ Cloydine E. Dunn	(SEAL)
✓ Charles J. Roswell	(SEAL)	✓ R.E. Sheets	(SEAL)
✓ Florence V. Dunn Sheets	(SEAL)		(SEAL)

(\$3.00 U.S. Documentary Stamps).

Trustee

VIRGINIA,

Washington County, to-wit:-

I, Sam W. Keys, a Notary Public in and for the County aforesaid, in the State of Virginia, do certify that Minter A. Dunn, whose name is signed to the foregoing writing bearing date on the 7th day of July, 1923, has acknowledged the same before me in my County aforesaid.

Given under my hand this 23rd day of July, 1923.

Sam W. Keys, Notary Public.

My commission expires on the 26 day of Dec. 1923.

VIRGINIA, SMYTH COUNTY, to-wit:

I, W. Lynn Copenhaver, a Notary Public in and for the County aforesaid, in the State of Virginia, do certify that Cloydine E. Dunn and Walter B. Jackson, trustee, whose names are signed to the foregoing writing bearing date on the 7th day of July, 1923, have acknowledged the same before me in my County aforesaid.

Given under my hand this 24 day of July, 1923.

W. Lynn Copenhaver, Notary Public.

My commission expires on the 11 day of May, 1925.

OREGON, CITY OF PORTLAND, to-wit:

I, J.A. Beckwith a Notary Public in and for the City aforesaid, in the State of Oregon, do certify that Edith Dunn Roswell and Charles J. Roswell, her husband, whose names are signed to the foregoing writing bearing date on the 7th day of July, 1923, have acknowledged the same before me in my City aforesaid.

Given under my hand & notarial seal this 3rd day of August, 1923.
(J.A. Beckwith, Notary Public)
(State of Oregon,

J.A. Beckwith, Notary Public.

My commission expires on the 11 day of Jan. 1924.

OHIO,

CITY OF PORTSMOUTH, to-wit:

I, W. W. Bauer a Notary Public in and for the City aforesaid, in the State of Ohio, do certify that Florence V. Dunn Sheets and R.E. Sheets, her husband, whose names are signed to the foregoing writing bearing date July 7th, 1923, have acknowledged the same before me in my City aforesaid.

Given under my hand & notarial seal this 25th day of July, 1923.

W.W. Bauer, Notary Public.

My commission expires on the 2nd day of Feb. 1925. 19____.

OHIO State, County of Franke,

CITY OF COLUMBUS, to-wit:-

I, J.B. Glick, a Notary Public in and for the City aforesaid, in the State of Ohio, do certify that Sallie B. Dunn Yates and D.C. Yates, her husband, whose names are signed to the foregoing writing bearing date the 7th day of July, 1923, have acknowledged the same before me in my City aforesaid.

Given under my hand & Notarial Seal this 26 day of July, 1923.

J.B. Glick, Notary Public.

My commission expires on the 5t day of July, 1925.

(J.A. Beckwith, Notary Public)
(State of Oregon)

VIRGINIA- In the Clerk's Office of the Circuit Court of Washington County, the 10th day of December, 1923.

The foregoing writing was delivered to the Clerk of the Circuit Court aforesaid, on the day above mentioned, and admitted to record at 10:50 o'clock A.M.

TESTE:

Elizabeth B. Warrington
Clerk.

-----000-----

M.H. Honaker, Commissioner, et al,

To

Daniel Moorefield,

McCormack, his wife, J.R. Catron and S.J. Catron, his wife, parties of the first part,
and Daniel Moorefield, party of the second part:

THIS DEED made this 22nd day of December

1919, by and between M.H. Honaker, Commissioner,

as hereinafter set forth, E.H. McCormack, M. C.

WHEREAS by a decree of the Circuit Court of the County of Washington, entered on the 13th day of April 1918, in the chancery cause of S.L. Mock and others vs Margaret McCann and others, therein pending, it was, among other things, adjudged, ordered and decreed that M.H. Honaker, who was thereby appointed Commissioner for the purpose, shall sell by public auction, after certain advertisement, and upon certain terms in said decree fully set forth, certain real estate therein described; and,

WHEREAS said M.H. Honaker, Commissioner aforesaid, pursuant to said decree, did on the 4th day of June, 1918, after having duly advertised the same, in accordance with the terms of said decree, offer for sale by public auction, the following described real estate, to-wit: A lot or parcel of land fronting on Reservoir Street, on the North side thereof, and running with the McAdamized Road and said Reservoir Street taking in (1/2) one half of the front on Reservoir Street of an enclosure to the Eastern fence, and (1/2) one hand of the back line thereof, taking in and encluding the small house next to the McAdamized Road. At which sale the said E.H. McCormack and M.C. McCormack became the purchasers thereof, at the price of (\$70.00) Seventy Dollars; and,

WHEREAS said sale was duly reported to the Court by said Commissioner and was by another decree entered in said cause on the 15th day of June, 1918, by said Court, approved and confirmed; and E.H. McCormack and M.C. McCormack have paid the whole of said purchase money, which payment was duly reported to said Court; and whereupon by another decree entered by said Court in said cause on the 12th day of December 1919, said M.H. Honaker was appointed Commissioner to execute and deliver to the said E.H. McCormack and M.C. McCormack, his wife, or to whomsoever they may direct in writing a good and sufficient deed, with special warranty to them or to whomsoever they may direct in writing; and,

At a Circuit Court continued and held for Washington County at the Court House thereof on Tuesday the 23d day of February, 1915.

S. Estella Clark, etc.,

Complainants,

vs.

In Chancery

W. L. Dunn, etc.

Defendants.

George E. Penn, Jr., is assigned Guardian ad litem to the infant defendant, Florence V. R. Dunn, to defend her interest in this suit, and thereupon the said George E. Penn, Jr., as such Guardian filed his answer to the bill of complainants, to which answer the complainants by counsel replied generally; and this cause coming on to be heard on the bill and exhibits filed therewith, taken for confessed as to the resident defendants, W. L. Dunn, Minter A. Dunn, Claudine Dunn, Lizzie Rector, Saunders Dunn, and the complainants having proceeded against Sallie Dunn Yates, Walter E. Dunn, Edith M. Love and Anna S. Hutton, non resident defendants, in the mode prescribed by law against non resident defendants, and was argued by counsel for the complainants. On consideration whereof, the Court being of opinion that after laying off the house and yard and stables and crops to Harry B. Dunn, that W. L. Dunn is entitled to one-fourth interest in the remainder of said lands of the said Florence and Emma Dunn; that the children of Sallie Rogers, Mrs. Estella Clark and Anna S. Hutton are entitled to a one-fourth interest in said land; that the children of Samuel R. Dunn, deceased, are entitled to a one-fourth interest in said land; that the children of Dr. Thomas E. Dunn are entitled to a one-fourth interest in said land.

It is therefore adjudged, ordered and decreed that George A. C. Beattie, A. M. Porterfield, John R. Robinson, George Stuart, N. P. Oglesby, who are hereby appointed Commissioners for the purpose, any three of whom may act, having been first duly sworn, do proceed to lay off and divide the real estate of which Emma Dunn and Florence Dunn died seized and possessed, consisting of several tracts of land in the County of Washington, near Glade Spring, Virginia, containing in the aggregate about two hundred and ten (210) acres and one hundred and thirty-seven (137) poles, be the same more or less, adjoining the lands of George A. C. Beattie, and others, after first laying off to Harry B. Dunn the house and lot, stables and crib, into four equal parts, having regard to quality and quantity, and assign one of four said parts to W. L. Dunn, brother of said Emma and Florence Dunn, deceased, and one of said four parts to Estella Clark and Anna S. Hutton, children of Thomas E. Rogers, and one of said four parts to Harry B. Dunn, Saunders Dunn and Mrs. Lizzie Rector, children of Dr. Thomas E. Dunn, deceased, and one of said four parts to Minter A. Dunn, Miss Claudine Dunn, Florence V. R. Dunn, Mrs. Sallie B. Dunn Yates, Walter E. Dunn and Mrs. Edith M. Love, children of Samuel R. Dunn, deceased; but if the said Commissioners find it impracticable to divide said land among the aforesaid parties, or should be of opinion that the interest of said parties would be more promoted by a sale of same in such case, they are required to report the facts upon which their opinion is based to the Court, and also what, in their opinion, is the fee simple value of the whole of the real estate of which the said Emma and Florence Dunn died seized and possessed, except that portion devised to Harry B. Dunn. In either case they are required to report their proceedings under this order to this Court.

And this cause is continued.

A copy,

Teste:

S. A. Summers, D. Clerk.

To the Honorable Preston W. Campbell, Judge, Circuit Court of Washington County, Abingdon, Virginia.

We, the undersigned Commissioners in the cause of S. Estella Clark et al vs. W. L. Dunn et al, duly appointed at a term of the Circuit Court of Washington County held on the 23rd day of February, 1915, for the purpose of partitioning the lands of which Florence Dunn and Emma Dunn died seized and possessed, after having been first duly sworn, did proceed to go on the lands aforesaid, and after having first decided that the said lands were succceptible of division to the best interest of the parties concered, did divide and allot the same as hereinafter set forth, and as per plat of the said lands hereto attached and forming a part of this report: To Harry B. Dunn --- House, or, stables and crib: Beginning at a gate post South of barn, thence S. 49-1/2 W. 2 poles to stake in line of Tract No. 1; thence N. 31-1/2 W. 22-1/5 poles to a stake; thence N. 58-1/2 E. 14-1/5 poles to stake above Spring; thence S. 30-1/2 E. 20 poles to south side of road and line on Tract No. 1, thence with said Tract S. 51 W. 12 poles to the beginning, containing one and three-fourths (1-3/4) acres, be the same more or less.

To S. Estella Clark and Anna S. Hutton, Tract No. 1, containing thirty-five and four-tenths (35-4/10) acres, be the same more or less: Beginning at stake in the Saltville and Glade Spring road and corner to J. H. Clark land, and with said Clark's line S. 61-3/4 W. 92 4/5 poles to corner of G. A. C. Beattie's land; thence with said Beattie's line N. 39-1/4 W. 9-3/4 poles; S. 69-3/4 W. 42-7/10 poles to M. E. Stanfield line, and with said Stanfield's line N. 32-1/2 W. 44 3/5 poles to stake in Stanfield's line, and corner to Tract No. 2; thence with Tract No. 2 N. 82 E. 79-1/2 poles crossing a branch to stake; thence N. 49-1/2 E. 48-2/5 poles to gate post Outh of barn, thence with South side of road N. 51 E. 12 poles, N. 65 E. 17-3/5 poles, N. 74 E. 6 poles to middle of the Glade Spring and Saltville road; thence with said road S. 4 E. 41-1/4 poles, S. 27-1/2 E. 4-3/4 poles to the beginning.

To Harry B. Dunn, Saunders Dunn and Mrs. Lizzie Rector, children of Dr. Thomas S. Dunn, deceased, Tract No. 2, containing sixty-five (65) acres, more or less: Beginning at a stake in the middle of the Glade Spring and Saltville road, and corner to Tract No. 1, thence with the line of Tract No. 1 S. 74 W. 6 poles, S. 65 W. 17-3/5 poles to post on South side of road and Southeast corner of the Harry B. Dunn lot or yard, thence with said lot N. 30-1/2 E. 20 poles to stake above Spring; thence S. 58 1/2 W. 14-1/5 poles to stake; thence S. 31-1/2 E. 22-2/5 poles to stake in line of Tract No. 1, and with the line of said tract S. 49-1/2 W. 46-2/5 poles, S. 82 W. 79-1/2 poles to stake in M. E. Stanfield's lines, and with said Standfield's line N. 32-1/2 W. 38-2/5 poles; N. 32 E. 49-3/10 poles to iron pin in Cabel Byars line, and with said Byars line S. 50-1/4 E. 28-3/10 poles; S. 57-1/4 E. 20 poles, S. 82 E. 1-1/4 poles, N. 19-1/2 E. 46-4/5 poles to large poplar, N. 5 W. 38-1/4 poles to ash, corner to Tract No. 3; thence with the line of said Tract No. 3 S. 59 E. 45 poles; S. 83-1/2 E. 54 poles to the middle of the Glade Spring and Saltville road; thence with said road S. 2-3/4 W. 18 poles, S. 5-1/2 W. 20-3/5 poles to the beginning. (This said Tract No. 2 is subject to a wagon road and pass way leading through the same for the use and benefit of Tract No. 4, and for the Byars and Stanfield tracts of land, the said road way to continue and be on the location of the present road.)

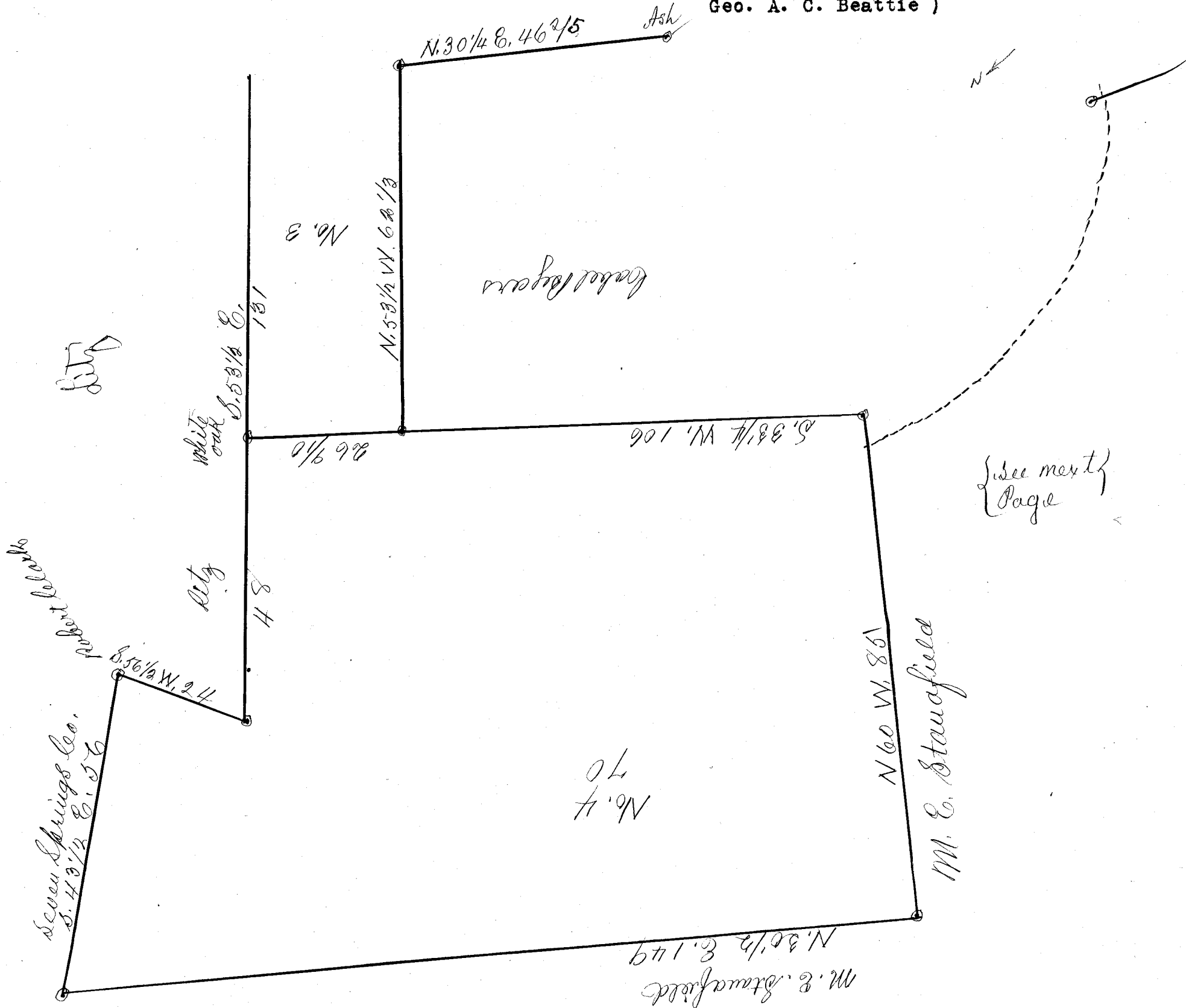
To minter A. Dunn, Claudine Dunn, Florence V. R. Dunn, Mrs. Sallie B. Yates, Walter E. Dunn, and Mrs. Edith M. Love, children of Samuel R. Dunn, deceased, Tract

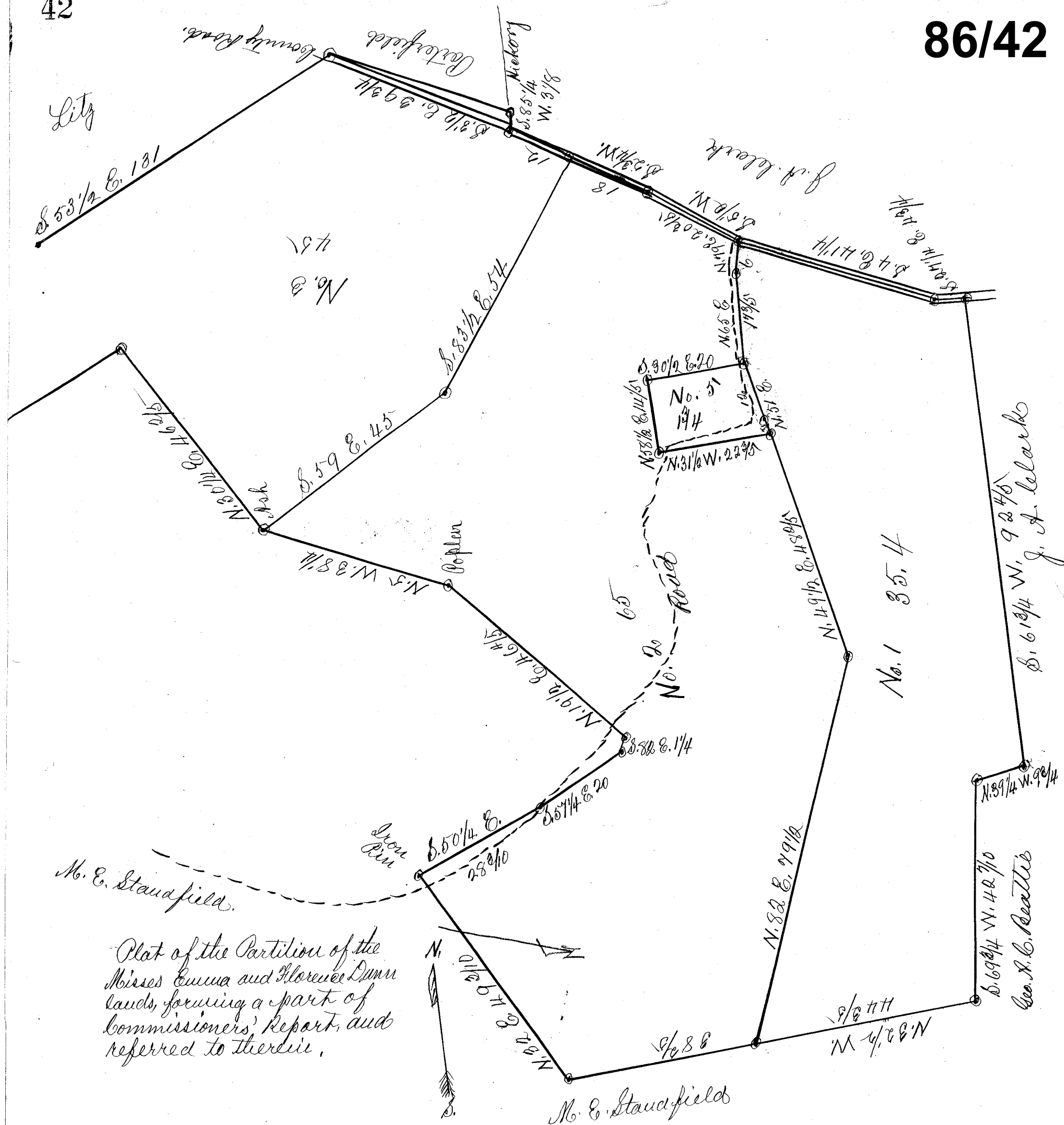
earn
to hold
Byers
land

No. 3, containing forty-five (45) acres, more or less: Beginning in the middle of the Glade Spring and Saltville road, and corner to tract No. 2, thence with the line of said tract N. 83-1/2 W. 54 poles to stake; N. 59 W. 45 poles to ash, Cabel Byars' corner; thence with said Byars' line N. 30-1/4 E. 46-2/5 poles to a stake; N. 53-1/2 W. 62-1/3 poles to stake in line of Tract No. 4 ^{and corner to Cabel Byars land; thence with the line of Tract No. 4} N. 33-1/4 E. 26-9/10 poles to white oak, corner to tract No. 4, and in the Litz line; thence with the said Litz line S. 53-1/2 E. 131 poles to a stake on the East side of the Glade Spring and Saltville road, corner to Porterfield's; thence S. 3-1/2 E. 39-3/4 poles to hickory, J. H. Clark's line; thence S. 85-1/4 W. 3-1/8 poles to the middle of the Glade Spring and Saltville road; thence with the said road S. 2-3/4 W. 12 poles to the beginning.

To Dr. William L. Dunn, brother to Emma and Florence V. Dunn, Tract No. 4, containing seventy acres, more or less: Beginning at white oak in Lits line and corner to Tract No. 3, thence S. 33-1/4 W. 106 poles with the line of Tract No. 3 and Caleb Byars line to stake, corner to M. E. Stanfield land; thence with said Stanfield's line N. 60 W. 85 poles, N. 30-1/2 E. 149 poles to stake, corner to Seven Springs Company land; thence with said Company's line S. 43-1/2 E. 56 poles to Robert Clark's and Litz corner, thence with said Litz line S. 56-1/2 W. 24 poles, S. 53-1/2 E. 48 poles to the beginning. With this Tract is allotted a road way through Tract No. 2 to the Glade Spring-Saltville road, the location to be where the road now runs.

N. P. Oglesby
J. R. Robinson
A. M. Porterfield
Geo. A. C. Beattie
Commissioners





Plat of the Partition of the
Misses Emma and Florence Dunn
lands, forming a part of
Commissioners' Report, and
referred to therein.

At a Circuit Court continued and held for Washington County at the Court House thereof on Wednesday the 13th day of October 1915.

S. Estella Clark,

Complainant,

vs

In Chancery

W. L. Dunn, et als,

Defendants.

This cause came on this day to be heard upon the papers formerly read, and the report of partition, filed the 6th day of August, 1915, made by N. P. Oglesby, J. R. Robinson, A. M. Porterfield and Geo. A. C. Beattie, four of the commissioners appointed by decree entered therein on the 23rd day of February, 1915, to which no exception has been taken, and has been returned more than ten days, to make partition of the lands in the bill and proceedings mentioned among the several parties entitled thereto; agreeably to the terms of said decree, and was argued by counsel. On consideration of said report, it is adjudged, ordered and decreed that the said report of partition of the said commissioners be, and the same is in all respects confirmed, and that the partition in manner and form aforesaid be held firm and stable. And it is further adjudged, ordered and decreed that a copy of the decree ordering the partition to be made and of the report of partition and of this decree be entered of record in Deed Book of the county clerk's office and indexed as required by law. And

it is further ordered that the costs of this suit be proportionally borne by the parties hereto. And there being no further reason why this cause should remain on the docket, the same is stricken therefrom.

A copy,

Teste:

S. A. Summers D. C.

VIRGINIA: In the Clerk's Office of the Circuit Court of Washington County, the 3rd day of June, 1916.

The foregoing writing was delivered to the Clerk of the Circuit Court aforesaid, on the day above mentioned, and admitted to record at 10 o'clock, A. M.

Teste:

R. J. Davenport, Clerk.

-----oOo-----

Henry Little and wife

-to-

A. B. Whiteaker, Trustee

first part, A. B. Whiteaker, Trustee, party of the first part, and the owner and holder

THIS INSTRUMENT, OR DEED OF TRUST, made and executed

on this the 1st day of June, A. D. 1916, by and between

Henry Little and wife, Martha J. Little, parties of the

of the note, or bond, claim, or indebtedness, herein and hereby secured, party of the third part; WITNESSETH THAT: For and in consideration of the sum of \$1.00 in hand paid, and other good and valuable considerations passing from the party of the second part to the parties of the first part, at and before the ensealing and delivery of these presents, the receipt of all of which is hereby acknowledged, and for the uses and purposes hereinafter shown, the parties of the first part have this day bargained and sold, and by these presents do hereby grant, bargain, sell, transfer and convey unto the party of the second part, his successors, assigns, etc., any and all the right, title, claim, interest or equity they have, or may have, in and to one certain lot, or parcel of land, situated in the County of Washington, State of Virginia, and described as follows: Being all that portion of the Read farm lying to the West of said farm and cut off from said farm by the public road, and bounded on the North and East by said public road, on the South by the Negro graveyard, and on the West by the property of J. M. Barker, containing about eight acres, more or less. Being the same property conveyed to Henry Little, one of the parties of the first part, by Samuel Read (Bachelor), by deed dated May 18th, 1903, which deed is of record in Clerk's office at Abingdon, Va., Deed Book Volume 70, pages 522-523, to which reference is made for more full, complete and perfect description. TO HAVE AND TO HOLD said lot, or parcel of land, above fully and particularly described and hereby conveyed, and every part thereof, together with all buildings, improvements, etc., thereon, and appurtenances thereunto in any wise belonging, unto the party of the second part, his successors, assigns, etc., in fee simple and forever. The parties of the first part covenant to and with the party of the second part that they are legally and lawfully seized and possessed of said lot, or parcel of land, hereinbefore fully and particularly described and hereby conveyed, and every part thereof; that they have a good and perfect right, full power and absolute authority to convey same; that it is unencumbered; and they furthermore covenant to forever warrant and defend the title thereto unto the party of the second part, his successors, assigns, etc., against the legal, or lawful, claim, or claims, of any and all persons, or parties, whomsoever. But this conveyance is made upon the following trust: To secure the party of the third part hereto, the owner and

This Deed mentioned in this deed were this day produced in the Clerk's Office, cancelled, this March 13th 1909. Teste: A. R. Blackwell, D.C.

The said W. W. Clark & Hattie Clark the party of the first part covenants that they have the right to convey the said land to the grantee; that they have done no act to encumber the said land; that the grantee shall have quiet possession of the said land, free from all encumbrances, and that the said party of the first part, will execute such further assurance of the said land as may be requisite. Witness the following signatures and seals.

✓ W. W. Clark, (seal)
✓ Hattie Clark, (seal)

State of North Carolina, Jackson County.

I, F. F. C. Woodward, Justice of the Peace, do hereby certify that W. W. Clark and Hattie Clark his wife, personally appeared before me this day, and acknowledged the due execution of the annexed deed of bargain and sale, and the said Hattie Clark being by me privately examined, separate and apart from her said husband, touching her voluntary execution of the same, doth state that she signed the same freely and voluntarily, without fear or compulsion of her said husband, or any other person, and that she doth still voluntarily assent thereto. WITNESS my hand and private seal, this 22nd day of May 1908.

F. F. C. Woodward, J.P., (seal)

State of North Carolina, Jackson County.

I, V. F. Brown Clerk of the Superior Court of said County, do certify that F. F. C. Woodward, whose genuine signature appears to the foregoing Instrument is, and was at the time of signing the same, an acting Justice of the Peace for said County, and full faith and credit are due to his official acts. Given under my hand and official seal this the 22nd day of May 1908.

(Official Seal)

V. F. Brown, Clerk Superior Court Jackson County.

Virginia:- In the Clerk's Office of the Circuit Court of Washington County the 26th, day of January, 1909.

The foregoing writing was delivered to the Clerk of the Circuit Court aforesaid, on the day above mentioned and admitted to record at 2:30, o'clock, P.M.

Teste: *A. R. Blackwell, D.C.* Clerk.

The four notes mentioned in this deed having been paid to me in full I hereby return the same. I do not know how many retained - this the 10th day of October, 1911. Affect: S. A. Summers, D.C. S. A. Summers, D.C. S. A. Summers, D.C.

Nannie E. Dunn, This Deed made this 10th day of April, in the year 1907, by and between
-To- Nannie E. Dunn, of the first part and Joseph H. W. Clark and Sallie
J.H.W. Clark & wife Estella Clark, his wife, of the second part, all of the County of Wash-
ington State of Virginia, WITNESSETH: That for and in consideration of the sum of Two Thousand, Two Hundred and Fifty Dollars (\$2250.00), paid and payable as follows: \$250.00 in hand paid, the receipt whereof is hereby acknowledged, and the balance in four equal installments of \$500.00 each, payable in one, two, three and four years from date, with interest from date payable annually and for which deferred payments bonds are this day executed, the said party of the first part doth grant, bargain, sell and hereby convey unto said parties of the second part, with covenants of general warranty, all of that certain tract or parcel of land, lying and being in the upper end of Washington County, adjoining the lands of Geo. A. C. Beattie, the Wm. McRyburn lands, the L. R. Porterfield lands and others and described as follows: BEGINNING at a stake at the East side of the Saltworks road, thence S.28-3/4 E.5-7/12 rods to a stake at the east side of said road, thence N.68 E.93-1/3 rods to a stake on L. R. Porterfield's line, thence S.20-1/4 E.24-2/3 rods to a stake, a corner to L. R. Porterfield and Wm. McRyburn, thence N.87-1/2 W.49 rods to a large double chestnut, old corner, thence S.49-1/8 W.54-1/3 rods to a stake, South-west of the old Saltworks road, thence S.60-1/4 W.77 rods, crossing the branch to a white oak stump, thence N.40-3/4 W.33-1/4 rods to a stake on the side of a ridge, thence N.60-1/4 E.92-3/4 rods to the beginning, and containing thirty acres, be the same more or less, with all appur-

tenances thereto belonging or in anywise appertaining; being the same tract of land conveyed to said party of the first part by J. W. Fell, Trustee and others by deed dated the 25th of July, 1899, and of record in the Clerk's Office of Washington County in D. B. 58, pg. 178. The division lines between the lands hereby conveyed and the lands of L. B. Porterfield and Wm. McRyburn have been fixed by the parties mutually interested and fences have been placed on said division line, it is understood that the right of the parties hereto are fixed by said adjustment. A vendor's lien is expressly reserved herein for the payment in full of said deferred payments. Witness the following signature and seal.

/ Nannie E. Dunn, (seal)

Virginia, Washington County, to-wit:

I, Saml. W. Keys, a Notary Public in and for the County aforesaid in the State of Virginia, certify that Nannie E. Dunn whose name is signed to the writing above, bearing date the 10th day of April, 1907, has acknowledged the same before me in my County aforesaid. Given under my hand this 11th day of April, 1907. My commission expires on the 7th day of January, 1908.

Saml. W. Keys, Notary Public.

Virginia:- In the Clerk's Office of the Circuit Court of Washington County the 27th, day of January, 1909.

The foregoing writing was delivered to the Clerk of the Circuit Court aforesaid, on the day above mentioned and admitted to record at 10:30, o'clock, A.M.

Teste:

A. R. Blackwell - Clerk.

M.T. Wagner & wife, | THIS DEED made and entered into this the 25th day of January, 1909, be-
-To- | tween M. T. Wagner and Barbara Wagner, his wife, of Washington County,
Matilda J. Pitts, | Va., parties of the first part, and Matilda J. Pitts party of the sec-
----- | ond part, WITNESSETH:- That in consideration of \$250.00, \$92.00 of
which is cash in hand paid, the receipt of which is hereby acknowledged, and the balance of
said \$250.00 by the assumption of a note for \$150.00 falling due the 27th of March, 1909,
with interest from March 27th 1908, and secured by deed of trust on the lot of land herein-
after conveyed, H. G. Peters being the Trustee, and same being recorded in the Clerk's of-
fice of the Circuit Court of Washington County, Va., said first parties do grant and convey
unto the said second party all that certain lot or parcel of land situated in Washington
County, Va., on the cross-road leading from the main Blountville road, near the City of
Bristol in said State, and described by metes and bounds as follows: BEGINNING at a point
in the road S. 51 E. 177' 6-3/16" from a planted rock in the road; thence with the line of
a parcel of land conveyed by the Homestead Company to W. F. Leonard and wife; S. 50 deg.
W. 519' 6-1/16" to a fence line; thence with the said fence line S. 38 deg. E. 82' 6-3/4";
thence N. 50 deg. E. 535' 9-3/16" to a point in the road; thence with the road 83' 3-1/2"
to the place of beginning, containing one acre, more or less; being the same land conveyed
to the said parties of the first part by the Homestead Company by deed dated September
23, 1905, recorded in Deed Book 71, p. 45 in the said Clerk's office.

The said parties of the first part covenant to warrant generally the title to the prop-
erty hereby conveyed and that the same is unencumbered. To have and to hold unto the said
party of the second part, her heirs and assigns, in fee simple forever. Witness the follow-
ing signatures and seals.

Witness:- H. G. Lavinder.

his
/ M. T. x Wagner, (seal)
mark
/ Barbara Wagner, (seal)

State of Virginia, County of Washington, to-wit:

I, H. G. Lavinder, a Notary Public in and for the said County and State, do certify
that M. T. Wagner and Barbara Wagner, his wife, whose names are signed to the foregoing

OUTSALE INCLUDED FOR PLAT SUBJECT PARCEL BEING LABELED AS BUCHANAN IN CORNER OF PLAT

BOOK 517 PAGE 222

THIS DEED, made and entered into this the 17th day of January, 1974, by and between SARAH KATHRYN CLARK BUCHANAN and L. C. BUCHANAN, her husband, parties of the first part, and DAVID RONALD FORE and ZENOBIA B. FORE, husband and wife, parties of the second part;

-: W I T N E S S E T H :-

That for and in consideration of the sum of TEN (\$10.00) DOLLARS, cash in hand paid, and other good and valuable consideration, the receipt of all of which is hereby acknowledged, the parties of the first part have bargained and sold, and do hereby grant, transfer and convey unto the parties of the second part, as tenants by the entirety, in fee simple, with right of survivorship as at common law, and with covenants of general warranty of title, all that certain tract or parcel of land, situate in the Monroe Magisterial District of Washington County, Virginia, and more particularly described according to a plat designated, "Sarah K.C. Buchanan, Near Glade Spring, Monroe Mag. District Washington County, Va.", made by John W. Hortenstine, C.L.S., a copy of which plat is attached hereto and made a part of this deed, as follows:

BEGINNING at a post in the eastern line of Virginia Highway No. 91, a corner to Mount Rose Cemetery, Incorporated; thence leaving the line of said highway and with the lines of said cemetery, S 76 30 E 681 feet to a post, N 19 51 E 446.8 feet to a post, and S 83 29 E 1006 feet to a post in the western line of Virginia Secondary Highway Route No. 753; thence with the western line of said highway, S 07 44 W 286.5 feet to a stake, a corner to the .23 acre parcel of land conveyed by the parties of the first part to East Tennessee Natural Gas Company by deed dated September 17, 1970, of record in said Clerk's Office in Deed Book 461, page 620;

GEORGE B. KREGER
LAW OFFICE
ABINGDON, VIRGINIA

thence leaving the line of said highway and with the lines of the land of East Tennessee Natural Gas Company, S 88 43 W 100 feet to an iron pin, S 04 26 W 100 feet to an iron pin, and N 88 43 E 100 feet to an iron pin in the western line of Virginia Secondary Highway Route No. 753; thence with the western line of said highway, S 00 54 W 151.8 feet, and S 07 34 W 395.3 feet to a stake, a corner to the residence property of the parties of the first part; thence leaving the line of said highway and with the lines of the residence property of the parties of the first part which is being retained by them, N 83 06 W 177.6 feet, and S 16 12 W 219.1 feet to a stake in the northern line of Virginia Secondary Highway Route No. 751; thence with the northern line of said highway, N 63 11 W 217.7 feet to an iron pin, a corner to Hayden; thence leaving the line of said highway and with the lines of Hayden, N 15 55 E 179.9 feet to an iron pin, N 06 58 E 248 feet to an iron pin, N 78 51 W 81.8 feet to an iron pin, and S 14 59 W 200 feet to an iron pin, a corner to Hayden and Sandefur; thence with the Sandefur lines, N 65 01 W 100 feet to an iron pin, and S 14 59 W 200 feet to an iron pin in the northern line of Virginia Secondary Highway Route No. 751; thence with the northern line of said highway, N 65 40 W 40.38 feet to an iron pin, a corner to DeBord; thence leaving the line of said highway and with the DeBord line, N 14 15 E 148.9 feet to an iron pin; thence with the lines of DeBord and the lines of the owners of Lots Nos. 17 through 45, as shown upon "A Plat of a Part of the Sarah Kathryn Clark Buchanan Land, 1 Mi. North of Glade Spring, Va.", of record in said Clerk's Office in Plat Book 9, page 41, N 70 19 W 269.35 feet to an iron pin, and N 75 56 W 625.3 feet to an iron pin in the eastern line of Lot No. 4 shown upon said subdivision plat; thence with the lines of

the owners of Lots Nos. 4 through 16, N 11 53 W 299.65 feet to an iron pin, a corner to Lot No. 16 shown on said plat; thence with the northern line of said Lot No. 16, N 76 29 W 166.18 feet to an iron pin in the eastern line of Virginia Highway No. 91; thence with the eastern line of said highway, N 11 53 W 45.15 feet to the BEGINNING, containing 24.9 acres, more or less.

Being a portion of Tract No. 3, assigned to SARAH KATHRYN CLARK BUCHANAN, in the name of Sarah Kathryn Clark, by Commissioners of Partition in the Chancery cause of Sarah Kathryn Clark et al vs. Josephine Clark Hyatt et al, said Report of Commissioners of Partition and the decree confirming the same being recorded in Deed Book 209, page 401, in said Clerk's Office.

This conveyance is made subject to the following conditions and restrictions, made for the benefit of purchasers of the lots from the parties of the first part located adjacent to Virginia Secondary Highway Route No. 751, and for the benefit of the residence property of the parties of the first part:

(1) No residence shall be placed or erected upon the land herein conveyed by the parties of the second part hereto, their heirs, assigns or successors in title, within 225 feet of the northern lines of Virginia Secondary Highway Route No. 751, at a cost of less than \$7,500.00, based on values and prices prevailing on May 24, 1961, exclusive of the cost of any garage or carport that may be attached to any such residence.

(2) No mobile home or house-trailer shall be placed or maintained upon the land herein conveyed by the parties of the second part, their heirs, assigns or successors in title, within 225 feet of the northern lines of Virginia Secondary Highway Route No. 751.

This conveyance is made subject to the provisions of a right-of-way agreement, executed by the parties of the first part to East Tennessee Natural Gas Company, dated October 3, 1964, of record in said Clerk's Office in Deed Book 393, page 247, which granted to East Tennessee Natural Gas Company a fifty (50) foot wide perpetual right-of-way and easement for pipe lines through the land hereby conveyed and other lands of Sarah Kathryn Clark Buchanan, which right-of-way and easement is for the transportation of oil, gas, petroleum products or any other liquids, gases or substances which can be transported through the pipe line, under, upon, over and through said lands, together with the other rights contained therein.

This conveyance is also made subject to all rights-of-way and easements for electric power lines, telephone lines and water pipe lines as they now exist through the land herein conveyed.

The parties of the second part shall pay the taxes assessed against the real estate herein conveyed for the year 1974.

WITNESS the following signatures and seals:

Sarah Kathryn Clark Buchanan (SEAL)
Sarah Kathryn Clark Buchanan
L. C. Buchanan (SEAL)
L. C. Buchanan

STATE OF VIRGINIA,
COUNTY OF WASHINGTON, to-wit:

I, Patricia M. Ellison, a Notary Public in and for the County of Washington, in the State of Virginia, do hereby certify that SARAH KATHRYN CLARK BUCHANAN and L. C. BUCHANAN, her husband, whose names are signed to the foregoing writing, bearing date on

the 17th day of January, 1974, have each acknowledged the same before me in my County and State aforesaid.

My commission expires on the 9th day of January, 1978.

Given under my hand this the 12th day of February, 1974.

Patricia M. Ellison
Notary Public

Virginia: County of Washington, to-wit:

In the Clerk's Office of the Circuit Court of the County and State aforesaid, the 17 day of Feb. 1974 at 2:40 o'clock P. M., the foregoing writing was presented and admitted to record, and together with the certificate of acknowledgement recorded. "Taxes imposed by S 58-54.1 of the Code have been paid. \$ 25.00"

Teste: C. H. Smith, Clerk

